



Staffed by SLDC

**City of St. Louis Port Authority
REGULAR BOARD MEETING - REGULAR SESSION VIA ZOOM
June 11, 2026 at 9:00 a.m.**

AGENDA

In order to ensure that the Board and the public are able to connect successfully, we recommend that you call in or join via Zoom starting at 8:45 a.m. to allow time to correct any connection issues. The host will open the phone line and initiate the meeting at that time. Should you have a problem accessing the meeting, please call (314) 657-3749 for assistance. Access to the meeting can be done in two ways:

Via Zoom at:

<https://us02web.zoom.us/j/89826710248?pwd=Um5PQU1ZUDZpTTJzejFhUTlIUDNxUT09>

Webinar ID: 898 2671 0248 and Password: 364404

Via Phone at: (929) 205-6099 with Webinar ID: 898 2671 0248

Zoom may be accessed at www.zoom.us and instructions on its use are available at: <https://support.zoom.us/hc/en-us>

Accessibility: Persons who need accommodations relating to accessibility should contact Rojeana Helms at helmsr@stlouis-mo.gov or by phone at (314) 657-3838, or (314) 589-6000 (TTY). Prior notice of two business days is recommended for accommodation requests.

CALL TO ORDER AND ROLL CALL

APPROVAL OF MINUTES- MAY 14, 2026 REGULAR BOARD MEETING

RESOLUTION 26-PT-26: RESOLUTION AUTHORIZING AND APPROVING AN ADMINISTRATION AGREEMENT WITH ST. LOUIS DEVELOPMENT CORPORATION [JAMES MORROW]

RESOLUTION 26-PT-27: RESOLUTION APPROVING AN AMENDED AND RESTATED MASTER REDEVELOPMENT AGREEMENT AMONG THE LAND CLEARANCE FOR REDEVELOPMENT AUTHORITY OF THE CITY OF ST. LOUIS, THE CITY OF ST. LOUIS PORT AUTHORITY AND GS STL DEVELOPER LLC, AND AUTHORIZING CERTAIN ACTIONS IN CONNECTION THEREWITH [SUSAN TAYLOR]

The official Agenda was posted on the bulletin board in the first-floor lobby of 1520 Market Street prior to 9:00 AM, June 10, 2026, and items may be withdrawn or modified during the public meeting at the discretion of the Board.

OPEN AGENDA

EXECUTIVE SESSION

- (A) Proceedings involving legal actions, causes of action or litigation, or confidential or privileged communications with attorneys or auditors, as provided by Section 610.021(1) RSMo. and/or Section 610.021(18) RSMo.;
- (B) Proceedings to discuss matters involving leasing, purchase or sale of real estate, as provided by Section 610.021(2) RSMo.; and/or
- (C) Proceedings regarding sealed bids and proposals and related documents, or documents related to a negotiated contract, as provided by Section 610.021(12) RSMo.

Next Board Meeting is Scheduled for THURSDAY, July 9, 2026, at 9 am

ADJOURNMENT



Staffed by SLDC

City of St. Louis Port Authority
REGULAR BOARD MEETING – REGULAR SESSION VIA ZOOM
May 14, 2026, at 9:00 a.m.
MINUTES

COMMISSIONERS:	Matt McBride, Chairman
(All present via Zoom)	Alderman Shane Cohn
	William Kay
	Kevin Liddy
COMMISSIONERS	Joan Miller
ABSENT:	James Jackson
	Taunia Mason
STAFF PRESENT:	Laura Bryant, Salise Cobb, Roland Comfort, Rojeana Helms, Rob Orr, Susan Taylor, and Stephen Westbrooks
COUNSEL PRESENT:	James Morrow
GUESTS:	Jacque Bardgett, Chris Johnsen, Mary Beth Nassif and Darius Redmond
PUBLIC PRESENT:	Gerry Connolly, Sean Fauss, Sarah Finley, Joe Grothe and Bryan Rogers

CALL TO ORDER

With a quorum being present, Chair McBride called the Regular Board Meeting to order on Thursday, May 14, 2026, at 9:03 a.m. Roll was called with four (4) Commissioners present [Cohn, Kay, Liddy and McBride].

APPROVAL OF MINUTES

Chair McBride called for a motion to approve the Minutes of April 9, 2026, Regular Board Meeting. Alderman Cohn so moved, Commissioner Kay seconded, roll was called, and the Minutes from April 9, 2026 Regular Board Meeting were approved with four (4) Commissioners present [Cohn, Kay, Liddy and McBride] voting Aye.

Chair McBride called for a motion to approve the Minutes of April 21, 2026, Special Session Board Meeting Open Session and Closed Session. Alderman Cohn so moved, Commissioner Liddy seconded, roll was called, and the Minutes of April 21, 2026, Special Session Board Meeting Open Session and Closed Session were approved with four (4) Commissioners present [Cohn, Kay, Liddy and McBride] voting Aye.

RESOLUTION No. 26-PT-24 – AUTHORIZING AND APPROVING AN AMENDMENT TO AGREEMENT WITH ARMSTRONG TEASDALE LLP (AT) FOR LEASE MATTERS [JAMES MORROW]

James Morrow, counsel for the Port Authority, presented the Resolution to the Board. Amendment #8 increases Armstrong Teasdale's contingency and adjusts the hourly rate for two partners, Tom Ray and Hillary Bean, who have extensive experience with Port leases. The new rates remain under market rate. Chairman McBride suggested revisiting this rate for standard leases after the current situation is resolved.

After further discussion, Chairman McBride called for a motion to approve Resolution No. 26-PT-24. Alderman Cohn so moved, Commissioner Liddy seconded, roll was called, and the motion passed with all four (4) Commissioners present [Cohn, Kay, Liddy, and McBride] voting Aye.

RESOLUTION No. 26-PT-25 – RECOMMENDING THAT THE CITY OF ST. LOUIS ENTER INTO A FIVE-YEAR LEASE WITH S.I WAREHOUSING CO., INC., D/B/A ARCHWAY FLEETING & HARBOR SERVICES (ARCHWAY) FOR MOORING ADJACENT TO 4260 SOUTH 1ST STREET (PIN #35) [SUSAN TAYLOR]

Susan Taylor presented the Resolution to the Board, regarding the five-year lease with SI Warehousing for 2,400 feet of mooring. The previous 25-year lease ended three years ago; since then, the tenant has been operating under annual permits at \$75 a linear foot and has requested a longer-term lease.

After discussion, Chairman McBride called for a motion to amend Resolution No. 26-PT-25 to read approve the rate for lease Years 1 and 2 at \$80 per linear foot. Alderman Cohn so moved and called for a vote of the previous roll, Commissioner Liddy seconded, with no objections to previous roll the motion passed with all four (4) Commissioners present [Cohn, Kay, Liddy and McBride] voting Aye.

Chairman McBride then called for a motion to approve Resolution No. 26-PT-25 as amended. Alderman Cohn so moved and called for a vote of the previous roll, Commissioner Liddy seconded, with no objections to previous roll the motion passed with all four (4) Commissioners present [Cohn, Kay, Liddy and McBride] voting Aye.

LOBBYIST REPORTS FY 26 Q1– Chris Johnsen reported Homeland Security has returned to normal after the 76-day government shutdown allowing USCG Admiral Will Watson to visit St. Louis and tour Port facilities and Congressman Wesley Bell included a \$250,000 earmark for the South Refuse project, and efforts are underway to secure the funds.

Jacque Bardgette reported that the FY 2027 state budget is significantly tighter; reducing the collective Port funding from over \$14 million to \$4 million and the \$1 million pavement grant for the Municipal River Terminal did not survive the budget cuts. Legislation includes reauthorization of MODESA, angel tax credits and office-to residential incentives.

ADJOURNMENT

With no further business to discuss, Chair McBride asked for a motion to adjourn. Commissioner Liddy made a motion to adjourn, and Chairman McBride seconded. The meeting was adjourned at 9:34 a.m.

Respectfully submitted,

RESOLUTION NO. 26-PT-26
PRESENTED TO THE BOARD – JUNE 11, 2026

TO: PORT AUTHORITY COMMISSION AND
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: JAMES MORROW, LEGAL COUNSEL

RE: RESOLUTION AUTHORIZING AND APPROVING AN ADMINISTRATION
AGREEMENT WITH ST. LOUIS DEVELOPMENT CORPORATION

EXECUTIVE SUMMARY:

This Resolution authorizes and approves an Administration Agreement between St. Louis Development Corporation (SLDC) and the City of St. Louis Port Authority (Authority).

BACKGROUND:

St. Louis Development Corporation acts as the administrative arm of the Authority. SLDC provides the Authority and each of the other city development agencies and authorities with staff, professional services and overhead for the administration of their programs. The Agreement to be approved sets out this relationship with the Authority. The same Agreement is executed with each of the SLDC-affiliated agencies and authorities.

The Agreement will be for a period of five (5) years and will automatically renew from year to year on the expiration of each successive renewal term until June 30, 2031.

A draft Agreement is attached to this resolution.

REQUESTED ACTION: Approval of this Resolution

FUNDING SOURCE: Port Revenue

ATTACHMENT(S): Exhibit A: Draft Agreement

NOW, THEREFORE, BE IT RESOLVED BY THE PORT AUTHORITY BOARD OF COMMISSIONERS AS FOLLOWS:

1. The Board of Commissioners of the City of St. Louis Port Authority (the Authority) hereby approves this Resolution and authorizes an Administration Agreement between St. Louis Development Corporation (SLDC) and the Authority, in substantially the form submitted to the Authority, with such changes as the Executive Director may approve that are consistent with the form as submitted to the Authority. The signature of the Chair, Vice Chair or the Executive Director or his designee on the Agreement, whether manual or facsimile, shall be conclusive evidence of approval by the Authority.
2. The Executive Director, his designee, legal counsel, and the appropriate officers, agents and employees of the Authority are authorized to take all steps necessary and to execute all documents necessary to effectuate the intent of this Resolution.
3. This Resolution shall take effect and be in full force immediately after its passage and approval by the governing body of the Authority.

ADOPTED this 11th day of June, 2026

THE CITY OF ST. LOUIS PORT AUTHORITY

By: _____

Title: _____

(SEAL)

ATTEST:

Assistant Secretary

ADMINISTRATION AGREEMENT

THIS AGREEMENT, made and entered into this 1st day of July, 2026, by and between ST. LOUIS DEVELOPMENT CORPORATION, a Missouri not for profit corporation (“SLDC”) and the CITY OF ST. LOUIS PORT AUTHORITY, a political subdivision of the State of Missouri (the “PORT”);

RECITALS

WHEREAS, the PORT is organized pursuant to Chapter 68 of the Missouri Revised Statutes and Title 21 of the Revised Code of the City of St. Louis for the purpose of promoting the general welfare and encouraging private capital investment by fostering the creation of industrial facilities and industrial parks within the Port District of the City of St. Louis, Missouri; and

WHEREAS, the PORT is empowered to make and execute contracts necessary or appropriate for the exercise of its powers and purposes; and

WHEREAS, SLDC is organized pursuant to Chapter 355, Missouri Revised Statutes, for the purposes of advancing the social welfare, health and economic interests of the City of St. Louis, Missouri and its residents; and

WHEREAS, SLDC is empowered to contract and cooperate with public corporations, political subdivisions or any agency or department thereof in furtherance of its corporate purposes, and in pursuance thereof, shall provide office facilities, staff operating support and professional services to the PORT in accordance with the terms and conditions of this Agreement; and

WHEREAS, the PORT is desirous of securing such staff, operating support, facilities and professional services from SLDC for the operation of activities, including the servicing of the PORT’s obligations under existing debentures and contracts, the operation of the PORT’s facilities, and in fostering economic development in the City of St. Louis;

NOW, THEREFORE, for and in consideration of the premises and the mutual covenants hereinafter contained, the parties hereto covenant and agree as follows:

ARTICLE I

AGREEMENT TERM

1.1 **Initial Term.** This Agreement shall commence upon execution by the parties hereto for one (1) year, until June 30, 2027 (the “Initial Term”).

1.2 **Renewal Terms.** This Agreement shall be automatically renewed from year to year for four (4) additional one (1) year terms subject to annual appropriations and funding by the PORT, commencing on the date of expiration of the Initial Term, and each successive renewal term, and ending not later than June 30, 2031, unless terminated by either party in accordance with Section 1.3 below.

1.3 Termination. This Agreement may be terminated during the Initial Term and any renewal term, without cause, by either party by the provision of ninety (90) days prior written notice to the other party. Said notice may be waived by the mutual written consent of the parties hereto. Further, said notice is inapplicable if the termination is for a failure of appropriation and funding as set forth in Section 1.2 above.

ARTICLE II

SCOPE OF SERVICES

2.1 Staff. SLDC shall provide staff for the administration, operation and implementation of the programs and functions of the PORT. SLDC shall, upon request by the PORT, perform all duties the PORT is responsible for under Chapter 68, Missouri Revised Statutes, including the PORT's responsibilities with respect to all of its assets and liabilities, real property owned or leased by the PORT and the PORT's non-financial responsibilities with respect to outstanding bond issues; provided, however, SLDC shall not have any authority hereunder to issue any bonds pursuant to the PORT's authority under Chapter 68, and SLDC shall have no authority, without the prior written consent of the PORT, to sell or encumber any assets of the PORT or to borrow any funds in the name of the PORT. At the request of the PORT, SLDC shall recommend persons to the PORT to serve as elected officers of the PORT, such as corporate secretary or assistant corporate secretary, consistent with the bylaws of the PORT, without additional compensation to such individuals. All staff shall be employed by SLDC and SLDC shall provide appropriate fringe benefits to the staff.

2.2 Administrative Services. SLDC shall provide managerial, administrative, secretarial, word processing and bookkeeping services to the PORT as required for the regular conduct of the business of the PORT.

2.3 Professional Services. SLDC shall furnish financial management, accounting, legal services and other professional services to the PORT.

2.4 Existing Law. With respect to Sections 2.5 and 2.7, it is expressly agreed by the parties hereto that the PORT is bound by the provisions of Chapter 5.38 and Chapter 21.36.040 of the Revised Code of the City of St. Louis and where required, SLDC shall comply with same.

2.5 Fund Management Services. Except as otherwise provided in Sections 2.6 and 2.7 below, the SLDC shall provide financial and accounting services to the PORT and shall disburse and manage, on a segregated basis in the name of the PORT, all funds of the PORT, including existing funds and future receipts. The PORT hereby appoints SLDC as the sole agent with respect to the existing funds and future receipts of the PORT. Such agency is coupled with an interest and shall be irrevocable except upon termination of this Agreement pursuant to Section 1.2 or 1.3 above. The following provisions regarding management of the said existing funds and future receipts of the PORT shall govern:

- (a) PORT funds shall be physically segregated, to account for the revenues and expenditures of the PORT;

(b) SLDC shall maintain special funds, debt service reserves and other special funds as required by the PORT;

(c) SLDC shall have the capacity to provide monthly financial statements for the PORT and will provide periodic reports. Annual audits will be prepared for SLDC by an independent accounting firm and will include separate reporting for the PORT financial activities;

(d) disbursements shall be made upon dual signatures based upon proper documentation and approval by the Executive Director of SLDC or his designee or the Controller of the PORT or his designee (unless otherwise provided in existing bond indentures or other contracts of the PORT), and in accordance with an annual budget presented for approval to the PORT Commission or specific PORT Commission authorization. Disbursements made by SLDC for the benefit of the PORT or disbursements made by the PORT for the benefit of SLDC shall be recognized as inter-company payables and receivables.

(e) cash balances and reserve funds shall be invested daily in obligations of the State of Missouri or of the United States or any agency thereof, or in bank certificates of deposit collateralized by the United States or United States agency obligations;

(f) all unexpended revenues in the said account of the PORT or of the PORT's contractors, less any outstanding obligations, shall be returned to the PORT upon termination of the Agreement between SLDC and the PORT; provided, however, that when utilizing grant funds on behalf of the PORT, SLDC will follow all compliance guidelines, and provided further, that any revenues subject to restriction under outstanding bonds or contracts of the PORT shall be disposed of in accordance with such restrictions.

(g) SLDC shall not expend or commit funds of the PORT other than for those purposes provided in the budget or through specific PORT Commission authorization.

2.6 Reports. SLDC shall present financial reports to the PORT on a quarterly basis. Other reports needed for the PORT's decision-making processing or as required by law shall be presented by SLDC to the PORT in a timely manner. In addition, SLDC shall report monthly to the PORT on marketing and other activities of SLDC. SLDC shall prepare an annual report to the PORT.

2.7 Community Development Funds. If and to the extent the PORT is, or in connection with prospective programs during the term of this Agreement shall be, an applicant for funding administered by the Community Development Association ("CDA"), SLDC shall prepare and process such applications and accept financial responsibility for such programs in SLDC's name and shall report to the PORT regarding said funds in accordance with Sections 2.5 and 2.6 above.

2.8 Restricted Funds. To the extent the PORT is required by law to deposit funds with the Comptroller of the City of St. Louis (i.e., the PORT Development Funds and the Improved Wharf Fund), it shall continue to do so (the "Restricted Funds"). The PORT hereby grants SLDC the authority to act as the sole agent of the PORT with respect to the Restricted Funds. This agency is coupled with an interest and shall continue during the Initial Term and any renewal term of this

Agreement. Whenever any payments or request for payments are made from the Restricted Funds, required signatures shall include two (2) of the following:

- Port Director;
- Chairperson of the PORT Commission;
- Vice Chairperson of the PORT Commission;
- Treasurer of the PORT Commission.

2.9 Office Facilities. SLDC shall provide offices and record storage to the PORT. The PORT shall make available to SLDC all of the PORT files and records, present furnishings, file cabinets and equipment. SLDC shall return all such PORT files, records, furnishings, file cabinets and equipment upon termination of this Agreement, provided SLDC, acting in its sole discretion shall have the right to dispose of any furnishings, file cabinets and equipment it deems obsolete, worn or unneeded at any time during the term of this Agreement and provided that SLDC may retain copies of any PORT file or record. SLDC may, upon notice to the PORT, dispose of any files and records of the PORT delivered to SLDC under this Agreement; provided, however, any such disposition shall be consistent with any record retention requirements applicable to the PORT imposed by federal, state or local laws, regulation, ordinance or order or any contract of the PORT.

ARTICLE III

COMPENSATION

3.1 Consideration. The consideration supporting this Agreement shall be the mutual obligations contained herein and shall not include monetary consideration, except as otherwise provided herein.

3.2 Fees. In consideration for the services provided in accordance with Article II hereof during the Initial Term, the PORT shall pay in good funds to SLDC a fee as mutually determined by the parties. Said fee shall, at a minimum, be sufficient to cover the costs incurred by SLDC during the Initial Term under this Agreement for the provision of services to the PORT in accordance with Article 11 hereof. The fee due SLDC shall be determined annually by the mutual written consent of the parties hereto prior to the start of the fiscal year. Such sum shall be paid in equal monthly installments due on the first day of each month, or at such other times and dates as the parties may agree.

3.3 Consent. The PORT agrees not to expend or commit any of its funds during the term of this Agreement without prior notice to SLDC in order to ensure that SLDC can provide appropriate staff to implement the expenditure or commitment of funds and that the costs of such staff is covered. SLDC also agrees not to expend or commit funds of the PORT (other than for those purposes provided in the budget attached hereto as Exhibit "A") without the prior written consent of the PORT. Provided, however, nothing herein contained shall be construed as a delegation by the PORT of its authority with respect to matters directly related to decisions pertaining to the issuance of revenue bonds.

ARTICLE IV

INDEMNIFICATION

4.1 Indemnification. SLDC agrees to indemnify and hold the PORT and its officers and directors harmless from any and all loss, damage, liability, claim, demand, cause of action and expense (including reasonable attorneys' fees) relating to any actual or alleged injury to or death of any person, any actual or alleged loss or damage to property, or any other actual or alleged loss or damage suffered by any third party arising from any acts of SLDC or its employees or the Board of Directors or officers of SLDC to the extent such loss, damage, liability or expense exceeds the limits of any liability insurance; provided, however, nothing contained herein shall require SLDC to indemnify the PORT, its officers and directors for any claim or liability resulting from the wrongful, willful or intentional acts of the PORT, its officers and directors.

4.2 Insurance. SLDC shall maintain hazard and general liability insurance for the PORT operations, or adequate self insurance with the City of St. Louis Public Facilities Protection Corporation, for the PORT's operations with the PORT and each of its officers and directors, in such form and amount agreed upon by SLDC and the PORT.

ARTICLE V

MISCELLANEOUS PROVISIONS

5.1 Default. If either party fails to perform any of its obligations hereunder (the "defaulting party"), the other party may, after ten (10) days' written notice and demand, perform or cause to be performed, the defaulting party's obligations hereunder and charge the reasonable cost to the same.

5.2 Modifications. All modifications to this Agreement shall be in writing and signed by the parties hereto.

5.3 Assignment. Neither party's rights nor obligations hereunder shall be assigned without the prior written consent of the other party.

5.4 Non-Discrimination. In accordance with applicable federal, state and local laws, regulations, ordinances and orders, SLDC shall not discriminate against employees or applicants for employment on the basis of race, creed, color, sex, sexual orientation, national origin, or physical disability.

5.5 Waivers. The waiver, by either party, of any breach under this Agreement shall in no way constitute a waiver of any subsequent breach of any term or condition hereof.

5.6 Notices. All notices and communications hereunder shall be in writing and shall be deemed given, made or communicated if either delivered in person or sent by United States certified mail and addressed to:

If to SLDC: St. Louis Development Corporation
1520 Market Street, Suite 2000

St. Louis, Missouri 63103
Attention: Executive Director

If to PORT: City of St. Louis Port Authority
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Chairperson (at his/her personal address).

5.7 Non-Exclusive Agreement. The parties hereto agree and understand that this Agreement shall be non-exclusive, and that SLDC intends to contract on a similar basis with other entities, including, but not limited to: the Land Clearance for Redevelopment Authority of the City of St. Louis, the Planned Industrial Expansion Authority of the City of St. Louis, the Land Reutilization Authority of the City of St. Louis, and the Industrial Development Authority of the City of St. Louis.

5.8 Access to Books and Records. The fiscal and programmatic records of SLDC shall be available upon request of CDA and the PORT. Books and records shall be retained for a minimum of five (5) years and in accordance with applicable laws which may include the Housing and Urban Development Community Block Grant regulations, applicable Small Business Administration regulations, and Missouri Revised Statutes.

5.9 Rights of Obligees. Nothing in this Agreement is intended to nor shall be construed to alter or limit the statutory rights under Chapter 68, Missouri Revised Statutes, of any obligee of the PORT as defined in said Chapter 68.

5.10 Independent Contractors; No Alter Ego. Except as specifically provided in Section 2.4 above, nothing contained in this Agreement is intended to nor shall be construed to create any partnership, joint venture, alter ego, or other relation of or between the parties, except that of independent contracting entities. SLDC and the PORT mutually agree that each shall be considered for all intents and purposes to be the independent contractor of the other, and neither shall be considered, nor shall the officers, employees or agents of each be considered to be the employees or agents of the other, except as (i) agents and independent contractors for the limited purpose of performing acts as authorized or required under this Agreement, and (ii) certain officers and employees of SLDC may be duly elected as officers of the PORT.

5.11 Statutory Powers. All the powers of the PORT shall be and remain vested in its board of commissioners pursuant to Chapter 68.045, Missouri Revised Statutes, and Title 21 of the Revised Code of the City of St. Louis and the PORT shall retain and may exercise all powers necessary or appropriate to carry out and effectuate its purposes under Chapter 68 et seq., Missouri Revised Statutes and Title 21, Revised Code of the City of St. Louis.

5.12 Invalid Provisions. In the event any covenant, condition or provision herein contained is held to be invalid by a court of competent jurisdiction, the invalidity of any such covenant, condition or provision shall in no way affect any other covenant, condition or provision herein contained, provided the invalidity of any such covenant, condition or provision does not materially prejudice either SLDC or PORT in its respective rights and obligations contained in the valid covenants, conditions and provisions of this Agreement.

5.13 Entire Agreement. This Agreement contains the entire agreement of the parties hereto and supersedes all prior agreements, representations and understandings, whether written or otherwise, between the parties relating to the subject matter hereof.

5.14 Additional Documents. The PORT agrees to deliver to SLDC such other and further agreements, consents, documents or instruments of conveyance, assignment or transfer and to do such other things and to take such other actions, supplemental or confirmatory, as may be required by SLDC for the purpose of or in connection with the consummation or evidencing of the contractual relationship contemplated hereunder.

5.15 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Missouri and the City of St. Louis.

[THIS SPACE INTENTIONALLY LEFT BLANK]

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the parties hereto have executed this instrument as of the day and year first above written.

(SEAL) **ST. LOUIS DEVELOPMENT CORPORATION**

By: _____
President & CEO

ATTEST:

(SEAL) **CITY OF ST. LOUIS PORT AUTHORITY**

By: _____
Chairperson

ATTEST:

RESOLUTION NO. 26-PT-27
PRESENTED TO THE BOARD – JUNE 11, 2026

TO: PORT AUTHORITY COMMISSION AND
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: SUSAN TAYLOR, PORT DIRECTOR

RE: RESOLUTION APPROVING AN AMENDED AND RESTATED MASTER
REDEVELOPMENT AGREEMENT AMONG THE LAND CLEARANCE FOR
REDEVELOPMENT AUTHORITY OF THE CITY OF ST. LOUIS, THE CITY OF
ST. LOUIS PORT AUTHORITY AND GS STL DEVELOPER LLC, AND
AUTHORIZING CERTAIN ACTIONS IN CONNECTION THEREWITH

EXECUTIVE SUMMARY:

The City of St. Louis Port Authority (the “Port Authority”), the Land Clearance for Redevelopment Authority of the City of St. Louis (the “LCRA”), and GS STL Developer LLC (the “Redeveloper”) are parties to a Master Redevelopment Agreement dated as of April 1, 2023, as amended by a First Amendment to Master Redevelopment Agreement dated December 14, 2023 and a Second Amendment to Master Redevelopment Agreement dated February 25, 2025 (as previously amended, the “Prior Redevelopment Agreement”). The Prior Redevelopment Agreement contemplated a multi-phased redevelopment of an approximately 95-acre area generally located south of the Poplar Street Bridge, east of Interstates 44 and 55, west of the Mississippi River and north of Rutger Street in the City of St. Louis, Missouri (the “Redevelopment Area”).

On November 28, 2025, a fire destroyed part of the Crunden Martin warehouse/factory complex, which was to be a key component of the first phase of the redevelopment envisioned by the Prior Redevelopment Agreement. The Redeveloper has requested that the Port Authority and the LCRA enter into an Amended and Restated Master Redevelopment Agreement for the purposes of revising certain dates for performance and descriptions of “Phase 1” in light of the Crunden Martin fire. The LCRA approved the Amended and Restated Master Redevelopment Agreement at its May 26, 2026 meeting.

This Resolution approves the Amended and Restated Master Redevelopment Agreement including the proposed revisions described above.

BACKGROUND:

The Gateway South Project is expected to be developed over several years at an estimated cost of approximately \$1.2 billion. Potential public funding and incentives for the project include, but are not limited to, federal port infrastructure grants, New Markets Tax Credits, Opportunity Zone, Brownfield Tax Credits, AIM Zone, port improvement district, community improvement district, transportation development district, MSD rainscaping grants and the real property tax abatement.

REQUESTED ACTION: Approval of this Resolution.

FUNDING SOURCE: Not applicable.

ATTACHMENT(S): Exhibit A - Amended and Restated Master Redevelopment Agreement.

NOW, THEREFORE, BE IT RESOLVED BY THE PORT AUTHORITY BOARD OF COMMISSIONERS AS FOLLOWS:

1. The Port Authority is hereby authorized to enter into the Amended and Restated Master Redevelopment Agreement (the “Amended Agreement”) in substantially the form attached hereto as Exhibit A, with such changes therein as shall be approved by the officials of the Port Authority executing the Amended Agreement, such officials’ signatures thereon being conclusive evidence of their approval thereof. The Executive Director is hereby authorized and directed to execute the Amended Agreement, for and on behalf of and as the act and deed of the Port Authority in the manner provided therein.
2. The Executive Director, his designee, legal counsel, and the appropriate officers, agents and employees of the Port Authority are authorized to take all steps necessary and to execute all documents necessary to effectuate the intent of this Resolution.
3. This Resolution shall take effect and be in full force immediately after its passage and approval by the governing body of the Port Authority.

ADOPTED this 11th day of June, 2026

THE CITY OF ST. LOUIS PORT AUTHORITY

By: _____

Title: _____

(SEAL)

ATTEST:

Assistant Secretary

AMENDED AND RESTATED MASTER REDEVELOPMENT AGREEMENT

among the

CITY OF ST. LOUIS PORT AUTHORITY

the

LAND CLEARANCE FOR REDEVELOPMENT AUTHORITY OF THE CITY OF ST. LOUIS

and

GS STL DEVELOPER LLC

dated as of

_____, 2026

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AMENDED AND RESTATED MASTER REDEVELOPMENT AGREEMENT

THIS AMENDED AND RESTATED MASTER REDEVELOPMENT AGREEMENT (this “*Agreement*”) is made and entered into as of _____, 2026, by and among the **CITY OF ST. LOUIS PORT AUTHORITY**, a port authority and political subdivision of the State of Missouri (the “*Port Authority*”), the **LAND CLEARANCE FOR REDEVELOPMENT AUTHORITY OF THE CITY OF ST. LOUIS**, a public body corporate and politic organized and existing under the laws of the State of Missouri (the “*LCRA*”), and **GS STL DEVELOPER LLC**, a Delaware limited liability company (the “*Redeveloper*,” and collectively with the Port Authority and the LCRA, the “*Parties*”).

RECITALS

A. The “Gateway South Redevelopment Plan” (the “*Redevelopment Plan*”) concerning an approximately 95-acre area (including rights-of-way) generally located south of the Poplar Street Bridge, east of Interstates 44 and 55, west of the Mississippi River and north of Rutger Street in the City of St. Louis, Missouri (as more particularly described on **Exhibit A** attached hereto and incorporated herein by reference, the “*Redevelopment Area*”) was prepared in accordance with (1) Sections 99.300 through 99.715 of the Revised Statutes of Missouri (the “*LCRA Law*”), (2) Chapter 353 of the Revised Statutes of Missouri (“*Chapter 353*”), and (3) Sections 11.06.360 *et seq.* (the “*353 Procedural Ordinance*”) of the Revised Code of the City of St. Louis.

B. Pursuant to Ordinance No. 71624, approved by the Board of Aldermen of The City of St. Louis, Missouri (the “*City*”), the City approved the Redevelopment Plan and found the Redevelopment Area to be a blighted area as defined in Chapter 353 and the LCRA Law.

C. The Redevelopment Area is located within the Port Authority’s port district boundaries and, pursuant to Chapter 68 of the Revised Statutes of Missouri (the “*Port Law*”), one of the statutory purposes of the Port Authority is to promote development within the port district.

D. The Port Authority is authorized pursuant to the Port Law and Section 70.220 of the Revised Statutes of Missouri to contract and cooperate with the LCRA and the Redeveloper for the promotion of development within the Redevelopment Area, as described in this Agreement.

E. The LCRA is authorized and empowered under the LCRA Law to undertake land clearance and urban renewal projects (as defined in Section 99.320 of the LCRA Law).

F. Pursuant to Chapter 353, the 353 Procedural Ordinance, the LCRA Law and Section 70.220 of the Revised Statutes of Missouri, the LCRA may contract and cooperate with the Port Authority and the Redeveloper for the planning, development, construction, acquisition or operation of any public improvement or facility, or for a common service, including, without limitation, blight remediation and the construction of public infrastructure in and around the Redevelopment Area.

G. In accordance with the LCRA Law, the Authority solicited redevelopment proposals for the Redevelopment Area and the Redeveloper submitted a proposal to complete the Redevelopment Project.

H. The Redeveloper has proposed and the Redevelopment Plan contemplates that the Redevelopment Area will be redeveloped for a variety of uses, including an innovation district focused on design and construction users, commercial and entertainment uses, residential uses, and recreational uses (collectively and, as further described in the Redevelopment Plan, the “*Redevelopment Project*”).

I. Pursuant to (1) Resolution No. 23-PT-4 approved by the Board of Commissioners of the Port Authority on February 4, 2023, (2) Resolution No. 23-PT-42 approved by the Board of Commissioners of the Port Authority on December 14, 2023 and (3) Resolution No. 25-PT-6 approved by the Board of Commissioners of the Port Authority on March 13, 2025, the Port Authority entered into a Master Redevelopment Agreement dated as of April 1, 2023, a First Amendment to Master Redevelopment Agreement dated as of December 13, 2023, and a Second Amendment to Master Redevelopment Agreement dated as of February 25, 2025 (collectively, the “Original Redevelopment Agreement”) and to otherwise assist the LCRA and the Redeveloper in the implementation of the Redevelopment Project and the promotion of development within the Redevelopment Area and the port district boundaries.

J. Pursuant to (1) Resolution No. 23-LCRA-10760 approved by the Board of Commissioners of the LCRA on February 28, 2023, (2) Resolution No. 23-LCRA-10831 approved by the Board of Commissioners of the LCRA on December 12, 2023 and (3) Resolution No. 25-LCRA-10912 approved by the Board of Commissioners of the LCRA on February 25, 2025, the LCRA designated the Redeveloper as the redeveloper of the Redevelopment Area and authorized the LCRA to enter into the Original Agreement and otherwise assist the Port Authority and the Redeveloper in the implementation of the Redevelopment Project and the remediation of blight within the Redevelopment Area. On March 1, 2023, the Authority provided a notice to the Board of Aldermen of the City of its intent to enter into the Original Agreement in accordance with Section 99.450 of the LCRA Law.

K. Pursuant to Resolution No. 26-LCRA-_____ adopted by the Board of Commissioners of the LCRA on May __, 2026 and Resolution No. 26-PT-_____ adopted by the Board of Commissioners of the Port Authority on _____, 2026, the LCRA and the Port Authority approved this Agreement for the purposes of amending and restating the Original Agreement in light of a fire that destroyed property intended to be rehabilitated and redeveloped as part of the “Phase 1” redevelopment activities described in the Original Agreement.

L. The Port Authority, the LCRA and the Redeveloper desire to enter into this Agreement to amend and restate the terms upon which the Redevelopment Project will be completed, including the provision of certain economic development incentives in connection therewith.

AGREEMENT

NOW, THEREFORE, in consideration of the premises and mutual promises contained herein and other good and valuable consideration, the adequacy and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

ARTICLE I

DEFINITIONS

1.1. Definitions. As used in this Agreement and unless otherwise defined herein, the following words and terms shall have the following meanings:

“*Additional Phase*” means a designated phase of Private Development within the Redevelopment Area other than Phase 1, as described in writing by the Redeveloper pursuant to **Section 3.3(a)**.

“*Agreement*” means this Amended and Restated Master Redevelopment Agreement, as the same may be from time to time modified, amended or supplemented in writing by the parties hereto.

“*AIM Zone*” means an Advanced Industrial Manufacturing Zone that may be designated by the Port Authority pursuant to the AIM Zone Act.

“*AIM Zone Act*” means the Advanced Industrial Manufacturing Zones Act, Section 68.075 of the Revised Statutes of Missouri.

“*Certificate of Public Infrastructure Costs*” means one or more certificates in substantially the form of **Exhibit C** attached hereto, evidencing the Public Infrastructure Costs incurred by or on behalf of the Redeveloper or a Sub-Developer, as further described in **Section 4.3**.

“*Chapter 353*” means Chapter 353 of the Revised Statutes of Missouri.

“*CID*” means one or more community improvement districts to be established in connection with the Redevelopment Project, all in accordance with the CID Act.

“*CID Act*” means the Community Improvement District Act, Sections 67.1401 to 67.1571 of the Revised Statutes of Missouri.

“*City*” means The City of St. Louis, Missouri, a constitutional charter city and political subdivision of the State of Missouri.

“*City Code*” means the Revised Code of the City of St. Louis, as may be amended from time to time.

“*Governmental Approvals*” means all plat approvals, re-zoning or other zoning changes, planned unit development approvals, site plan approvals, conditional use permits, variances, building permits, architectural review or other subdivision, zoning or similar approvals, or approvals required by the City Code or this Agreement for the completion of the Redevelopment Project.

“*Infrastructure Bonds*” means bonds issued from time to time by the Port Authority to finance or refinance Public Infrastructure Costs pursuant to **Section 4.3(e)**.

“*Infrastructure Bond Proceeds*” means proceeds from the sale of the Infrastructure Bonds.

“*Infrastructure Financing Agreement*” means an Infrastructure Financing Agreement among the CID, the TDD, and the Port Authority, wherein certain revenues from the CID, the TDD, the PID and the AIM Zone are made available to repay the Infrastructure Notes and the Infrastructure Bonds.

“*Infrastructure Notes*” means notes issued from time to time by the Port Authority to finance or refinance Public Infrastructure Costs pursuant to **Section 4.3(d)**.

“*LCRA Law*” means Sections 99.300 to 99.715 of the Revised Statutes of Missouri.

“*LRA*” means The Land Reutilization Authority of the City of St. Louis, Missouri.

“*Nonprofit Corporation*” means the nonprofit corporation described in **Section 5.1**.

“*Parcel Development Agreement*” means a parcel development agreement between the Port Authority or the LCRA, as applicable, and the Redeveloper or, if applicable, a Sub-Developer (and consented to by the Redeveloper if a Sub-Developer is the party to the Parcel Development Agreement),

setting forth a description of the applicable terms and conditions for the incentives associated with a specific portion of the Private Development, in substantially the form of **Exhibit F**.

“Phase 1” means, collectively:

- (a) the design and construction of Public Infrastructure within the Phase 1 Property;
- (b) environmental remediation of the Phase 1 Property;
- (c) the development or redevelopment of at least 250,000 square feet of residential, commercial or industrial space (including associated parking and public spaces).

“Phase 1 Property” means the property identified in **Section 2.2(a)**.

“PID” means a port improvement district to be established in connection with the Redevelopment Project, all in accordance with the Port Law.

“Port Authority” means the City of St. Louis Port Authority.

“Port Law” means Chapter 68 of the Revised Statutes of Missouri.

“Preliminary Funding Agreement” means the Preliminary Funding Agreement dated as of August 11, 2022, between the Port Authority and the Redeveloper, as may be amended from time to time.

“Private Development” means the development or redevelopment of privately-owned buildings as part of the Redevelopment Project, including residential, commercial and industrial uses.

“Public Infrastructure Costs” means any costs of completing the Public Infrastructure Improvements that are eligible for payment under the CID Act, the TDD Act or the Port Law, including, without limitation, the costs of issuing any Infrastructure Notes or Infrastructure Bonds.

“Public Infrastructure Improvements” means the construction and reconstruction of streets, sidewalks, trails, storm and sanitary sewers, and mainline utility improvements benefitting the Redevelopment Area.

“Redeveloper” means GS STL Developer LLC, a Delaware limited liability company, or its permitted successors or assigns in interest.

“Redevelopment Corporation” means the SLDC Redevelopment Corporation or other urban redevelopment corporation created pursuant to Chapter 353 and acceptable to the LCRA and the Redeveloper.

“Redevelopment Area” means the area described in **Exhibit A** attached hereto and incorporated herein by reference.

“Redevelopment Project” means the Redevelopment Project described in the Redevelopment Plan and incorporated herein by reference.

“Related Party” means any party related to the Redeveloper or a Sub-Developer, as the context may require, by one of the relationships described in Section 267(b) of the United States Internal Revenue

Code of 1986, as amended, or any party controlled by or under common control with the Redeveloper or Sub-Developer, as applicable.

“*Sub-Developer*” means a Sub-Developer named in a Parcel Development Agreement undertaking a portion of the Redevelopment Project.

“*TDD*” means a transportation development district to be established in connection with the Redevelopment Project.

“*TDD Act*” means the Missouri Transportation Development District Act, Sections 238.200 to 238.280 of the Revised Statutes of Missouri.

ARTICLE II

REDEVELOPMENT PROJECT COSTS; PROPERTY ACQUISITION

2.1. Redevelopment Project Costs.

(a) *Planning and Soft Costs.* Pursuant to the Preliminary Funding Agreement, the Redeveloper has agreed to reimburse the Port Authority and the LCRA for any third-party planning and soft costs, including attorneys’ fees, associated with the negotiation, approval and administration of this Agreement and other documents.

(b) *Property Acquisition and Construction Costs.*

(1) Property Acquisition. The Redeveloper, or a Sub-Developer acting in accordance with a Parcel Development Agreement, shall pay all costs associated with acquisition of property necessary for the implementation of the Redevelopment Project.

(2) Private Development. The Redeveloper, or a Sub-Developer acting in accordance with a Parcel Development Agreement, shall pay all costs associated with construction of the Private Development, subject to the development incentives described in **Section 4.2** and **Section 4.3**.

(3) Public Infrastructure Costs.

(i) The Redeveloper, at its sole expense, shall prepare, or cause to be prepared, one or more engineering studies indicating the current condition of public infrastructure within the Redevelopment Area and the improvements to such infrastructure required to accommodate the Private Development anticipated as part of the Redevelopment Project. Copies of such engineering studies shall be provided to the Port Authority and the LCRA.

(ii) The Redeveloper shall pay, or cause to be paid, all costs of constructing the Public Infrastructure Improvements to the extent such costs are not paid by grant funds or paid or reimbursed from development incentives pursuant to **Section 4.2** or **Section 4.3**. Notwithstanding the foregoing, any costs associated with Public Infrastructure Improvements paid by, or caused to be paid by, the Redeveloper may be reimbursed to the Redeveloper or its designee with Infrastructure Bond Proceeds or endorsements to Infrastructure Notes.

(iii) The Port Authority, the LCRA and the Redeveloper will cooperate in pursuit of grant funding for the Public Infrastructure Improvements; provided, however, that:

(A) nothing herein shall obligate the Port Authority or the LCRA to prioritize grants for the Redevelopment Area over grants for any other portion of the City,

(B) the Port Authority and the LCRA are not obligated to apply for any grants that, in their sole discretion, they believe are unlikely to be obtained or would impair grant applications for other projects in the City,

(C) nothing herein shall obligate the Port Authority or the LCRA to expend their own funds to prepare grant applications or supporting materials required to apply for a specific grant,

(D) the Port Authority and the LCRA expressly make no representations regarding the likelihood that any grant funding will ultimately be obtained, and

(E) the failure to obtain any grant funding shall not relieve any Party of any of its obligations hereunder, except as may be expressly stated herein.

(c) *M/WBE and Compliance Fees.* The Redeveloper or applicable Sub-Developer shall pay, or cause to be paid, all generally applicable MBE/WBE and workforce compliance fees with respect to a particular Private Development concurrently with the execution of a Parcel Development Agreement related to such Private Development.

2.2. Property Acquisition.

(a) *Phase 1 Property.* The Developer represents that it or Related Parties own or control all real property necessary to complete Phase 1, consisting of the following parcels (as may be amended as provided below, the “Phase 1 Property”):

Parcel Number	Address
0022-9-025.000	1102 S. Second Street
0048-9-070.000	1023 S. Second Street
0048-9-060.000	1017 S. Second Street
0023-9-025.000	1030 S. Third Street
0048-9-050.000	200-210 Chouteau Avenue
0044-9-025.000	900-922 S. Second Street
0043-9-020.000	818-826 2nd Street
0043-9-010.000	104 Gratiot Street
0049-9-015.000	200-224 Lombard Street
0050-9-040.000	800-802 S. 3rd Street
0050-9-010.000	806-810 S. 3rd Street
0050-9-125.000	221-231 Lombard Street
0050-9-105.000	215-219 Lombard Street

Notwithstanding the foregoing, the Developer may from time to time, by written notice to the LCRA and the Port Authority, remove parcels included in the Phase 1 Property; provided, however, that any removal of property shall not reduce the Developer's obligation to include at least 250,000 square feet of residential, commercial or industrial space in Phase 1. The Developer may also, with the written consent of the Executive Director of the LCRA and the Executive Director of the Port Authority, add parcels to the Phase 1 Property, which consent shall be in the Executive Directors' sole discretion.

(b) *Additional Phase Property.*

(i) The Redeveloper, a Related Party or a Sub-Developer may acquire other property within the Redevelopment Area necessary for Additional Phases by private negotiation, including, without limitation, property owned by the LRA. The redevelopment any such property within an Additional Phase shall described in a Parcel Development Agreement entered into in accordance with the terms of this Agreement.

(ii) The Redeveloper, a Related Party or a Sub-Developer may negotiate with the City to acquire any City-owned parcels within any Additional Phases. The Redeveloper, a Related Party, or a Sub-Developer will not negotiate for the acquisition or lease of City-owned parcels currently under lease to private parties authorized by Ordinances 67298, 67300, 67402, 68964, 69878 and 71384, as may be amended from time to time, without first providing notice to the Port Authority.

(c) *Vacation of City Rights-of-Way.* At the request of the Redeveloper, the Port Authority and the LCRA will cooperate with the Redeveloper, a Related Party or a Sub-Developer to seek appropriate legislation from the City's Board of Aldermen to cause the vacation of any City rights-of-way necessary for construction of the Redevelopment Project. The Parties acknowledge that vacation of any City rights-of-way shall be subject to the City's discretion.

(d) *No Eminent Domain.* Neither the Port Authority nor the LCRA will acquire any parcels for the Private Development through the exercise of their respective eminent domain powers. Notwithstanding the foregoing, this subsection is not intended to prohibit the Port Authority or the LCRA from, in each entity's sole discretion, condemning property necessary for the construction of the Public Infrastructure Improvements or assisting the Redeveloper or a Sub-Developer in resolving title issues.

(e) *Notification of Property Acquisition.* The Redeveloper shall report in writing to the Port Authority and LCRA when it or any Sub-Developer has acquired any parcels within the Redevelopment Area (other than parcels acquired from the Land Reutilization Authority of the City of St. Louis, the LCRA or the Port Authority).

ARTICLE III

MANNER OF REDEVELOPMENT

3.1 Redevelopment Rights. So long as this Agreement is in effect, the Port Authority and the LCRA will not, without the permission of the Redeveloper, offer incentives for any Private Development within the Redevelopment Area, except as contemplated by this Agreement or amendments to this Agreement.

3.2. Construction of Phase 1. On or before December 31, 2032:

(a) the Redeveloper and/or any applicable Sub-Developer(s) shall enter into one or more Parcel Development Agreements collectively providing for the development or redevelopment of the Private Development constituting Phase 1; and

(b) the Redeveloper and/or any applicable Sub-Developer(s) shall provide written evidence to the Port Authority and the LCRA that such entities have financing commitments to fund the construction of Private Development specified in the Parcel Development Agreements.

Notwithstanding the foregoing, if a tenant or end-user preliminarily identified for Phase 1 ultimately locates within the Redevelopment Area, but not on the Phase 1 Property, then the buildings for such other property within the Redevelopment Area may be counted toward satisfaction of this subsection and the originally proposed site in Phase 1 for such use may be developed as an Additional Phase.

3.3. Construction of Additional Phases. Additional Phases shall be completed in accordance with the following schedule:

(a) The Redeveloper shall, prior to December 31, 2038, provide the Port Authority and the LCRA with a written description of any Additional Phases that either it or a Sub-Developer intends to pursue.

(b) On or before December 31, 2038, the Redeveloper and/or any applicable Sub-Developer(s) shall enter into Parcel Development Agreements for the Additional Phases.

(c) The Additional Phases shall be substantially completed within the time periods set forth in the applicable Parcel Development Agreements.

Notwithstanding anything else to the contrary contained herein, the Redeveloper shall have no redevelopment rights, in **Section 3.1** or otherwise, to any property within the Redevelopment Area that is not subject to a Parcel Development Agreement executed before December 31, 2038. However, the foregoing sentence is not intended to preclude the Parties and any applicable Sub-Developers from amending or supplementing any Parcel Development Agreements originally executed before December 31, 2038.

3.4. Project Construction.

(a) Construction of the Redevelopment Project shall be pursued in a good and workmanlike manner in accordance with the terms of this Agreement.

(b) The Redeveloper or any applicable Sub-Developer shall not commence construction of any Private Development unless such Private Development is the subject of an executed Parcel Development Agreement, and the LCRA and Port Authority shall negotiate the terms of any such Parcel Development Agreement in good faith and shall not unreasonably delay consideration of approval of any such Parcel Development Agreement.

(c) The Redeveloper and applicable Sub-Developers shall comply with the applicable ordinances, executive orders, regulations and rules governing MBE/WBE, workforce and prevailing wage in effect at the time that the Parcel Development Agreement for the applicable Private Development is executed.

(d) The Port Authority, the LCRA and their duly authorized agents may, at reasonable times during normal business hours and, except in the event of emergencies, upon not less than three business days' prior written notice, subject to the Redeveloper's and any applicable Sub-Developer's usual business proprietary, safety and security requirements, inspect all work being performed in connection with the construction and installation of the Redevelopment Project.

3.5. Construction Contracts; Insurance.

(a) All construction contracts for the Redevelopment Project entered into by or on behalf of the Redeveloper, a Sub-Developer or a Related Party shall state that the contractor has no recourse against the Port Authority or the LCRA in connection with the contractor's construction of the applicable portion of the Redevelopment Project. The Redeveloper and any applicable Sub-Developer shall cause their respective contractors to comply with all applicable City ordinances related to incentivized projects.

(b) Pursuant to a Parcel Development Agreement, the Redeveloper and/or applicable Sub-Developer shall obtain or shall require any contractor to obtain workers' compensation, commercial public liability and builder's risk insurance coverage in the amounts required by **Section 6.7** and shall deliver evidence of such insurance to the Authority in accordance with the provisions thereof. The Redeveloper and/or applicable Sub-Developer shall require that such insurance be maintained by the contractors for the duration of the construction of the applicable portion of the Redevelopment Project. If requested by the Executive Director of the Port Authority and the LCRA, the Redeveloper shall cause the Port Authority, the LCRA, other City-related entities and/or the St. Louis Development Corporation to be named as additional insureds under the policies required by this subsection.

3.6. Competitive Bids; Prevailing Wage; Federal Work Authorization.

(a) The Redeveloper shall comply with all federal, state and local laws relating to the construction of the Redevelopment Project, including, but not limited to, Section 107.170 of the Revised Statutes of Missouri, and laws relating to the payment of prevailing wages and competitive bidding, to the extent such laws are applicable to the Redevelopment Project or portions thereof.

(b) The Redeveloper acknowledges that it must comply with Section 285.530 of the Revised Statutes of Missouri regarding enrollment and participation in a federal work authorization program with respect to its employees working in connection with the Redevelopment Project. The Redeveloper represents and warrants that it is in compliance with Section 285.530 of the Revised Statutes of Missouri at the time of execution of this Agreement and has provided a sworn affidavit and supporting documentation affirming participation by or on behalf of itself in a qualified work authorization program as evidence thereof. On or before December 31 of each year during the term of this Agreement, beginning December 31, 2026, the Redeveloper shall provide an affidavit in substantially the form of **Exhibit D** attached hereto and incorporated herein by reference and documentation to evidence the Redeveloper's continued compliance with Section 285.530 of the Revised Statutes of Missouri.

(c) It shall be a material breach of this Agreement and any applicable Parcel Development Agreement, if the Redeveloper or a Sub-Developer knowingly permits a contractor to employ persons not authorized to work in the United States. If the Redeveloper reasonably believes a contractor working on the Redevelopment Project is employing persons not authorized to work in the United States, the Redeveloper shall promptly report the basis for that belief to the Port Authority and the LCRA.

3.7. Governmental Approvals. The Redeveloper shall obtain or cause to be obtained all necessary Governmental Approvals and shall be subject to all lawful inspections and perform such necessary acts as are required under the ordinances of the City. The Port Authority and the LCRA agree to

cooperate with the Redeveloper and any Sub-Developer to request that the City process and timely consider all complete applications for the Governmental Approvals within the jurisdiction of the City as received, all in accordance with the City Code and other applicable laws and regulations.

3.8. Zoning; Urban Design Guidelines.

(a) The Parties acknowledge that the Redevelopment Area is currently partially located in the City's "Jefferson Memorial" zoning district and partially located in the "K – Unrestricted" zoning district. The Parties anticipate that the Redevelopment Project may be implemented without the need for zoning changes. Notwithstanding the foregoing statement, from time to time, it is possible that a particular future land use may require zoning changes, conditional use permits or variances in connection with the proper development of such use. Any such zoning change, permit or variance will be subject to the generally applicable provisions of the City Code.

(b) The Redeveloper agrees that the Redevelopment Project will be developed in accordance with the Urban Design Guidelines attached as **Exhibit H**. Any Sub-Developer operating pursuant to a Parcel Development Agreement must also comply with the Urban Design Guidelines attached as **Exhibit H** with respect to the portion of the Redevelopment Project described in the applicable Parcel Development Agreement.

3.9. Excusable Delay. Notwithstanding anything to the contrary contained herein, the schedule for substantially completing the Redevelopment Project described in **Section 3.2** and **Section 3.3** shall be automatically extended by the number of days of delay caused by actions or events beyond the control of the Redeveloper or applicable Sub-Developer, including acts of God, labor disputes, strikes, lockouts, civil disorder or unrest, war, lack of issuance of any permits and/or legal authorization by the governmental entity necessary for the Redeveloper or the Sub-Developer to proceed with the construction or cause the construction of the Redevelopment Project (provided that reasonable efforts have been made to obtain said permits/authorizations and all conditions precedent to the issuance of said permits and/or authorizations have been met), shortage or delay in the shipment of material or fuel, fire, unusually adverse weather conditions, unusually wet soil conditions, unavoidable casualties, materially adverse litigation relating to Redevelopment Project, the occurrence of a public health emergency that materially impacts availability of labor, or any causes beyond the Redeveloper's reasonable control, or by any other cause which the Port Authority reasonably determines may justify the delay (an "*Excusable Delay*"). No Excusable Delay will be deemed to exist unless the Redeveloper or applicable Sub-Developer notifies the Port Authority and the LCRA in writing of such Excusable Delay within 60 days after the commencement of the event causing such Excusable Delay (or within 60 days after the date that the Redeveloper or applicable Sub-Developer should reasonably have determined that such event will cause such Excusable Delay). An Excusable Delay shall not include any condition or circumstance caused or extended by the Redeveloper, a Sub-Developer or a Related Party or attributable to actions or inaction by the Redeveloper, the Sub-Developer or a Related Party. If unforeseen site conditions in the Redevelopment Area, such as unknown environmental contamination or geotechnical conditions not identified before the commencement of construction of Phase 1 or an Additional Phase, as applicable, cause significant delay in completing site work necessary for the construction of Phase 1 or an Additional Phase, the deadlines provided in **Section 3.2** and **Section 3.3** shall be extended for the period of time the Redeveloper and applicable Sub-Developers can demonstrate to the reasonable satisfaction of the Executive Director of the Port Authority and the LCRA to be necessary to remediate such conditions, but not to exceed two years.

3.10. Property Maintenance; Compliance with Applicable Laws.

(a) The Redeveloper shall maintain or cause to be maintained all portions of the Redevelopment Project owned, leased or operated by the Redeveloper or a Related Party in good repair and condition and in compliance with all property maintenance provisions included in the City Code.

(b) The Redeveloper shall operate or cause to be operated all portions of the Redevelopment Project owned, leased or operated by the Redeveloper or a Related Party in accordance with all applicable permits, licenses, laws and regulations.

ARTICLE IV DEVELOPMENT INCENTIVES

4.1. Real Property Tax Abatement.

(a) The Parties agree that 15 years of partial real property tax abatement will be available for each completed component of Private Development within Phase 1, which abatement will be incorporated into Parcel Development Agreements for Phase 1 in accordance with the following terms:

(1) The 15-year abatement period will begin in the year following completion of the applicable component of Private Development.

(2) During the 15-year abatement period, the owner of the property subject to the applicable Parcel Development Agreement will make payments in lieu of taxes in sufficient amounts to cause the abatement to apply to (i) 90% of incremental assessed value in years 1 – 5 of the abatement period, (ii) 75% of incremental assessed value in years 6 – 10 of the abatement period, and (iii) 50% of incremental assessed value in years 11 – 15 of the abatement period.

(3) The real property tax abatement may be implemented by any method available by law, as mutually agreed to by Redeveloper, applicable Sub-Developer and the entity (i.e., either the Port Authority or the LCRA) implementing the tax abatement.

(b) The terms of real property abatement available for any Additional Phases will be set forth in the applicable Parcel Development Agreements, following review and analysis of the Additional Phase by SLDC and approval by the Port Authority or the LCRA (as determined by which entity is implementing the applicable real property tax abatement). Notwithstanding the foregoing, the potential real property tax abatement for Additional Phases will not exceed 15 years, consisting of abatement of 90% of incremental assessed value in years 1 – 10 and abatement of 50% of incremental assessed value in years 11 – 15. The actual years and percentages of tax abatement available for a specific Additional Phase may be less than the maximum amounts described in this subsection.

(c) The Parties agree that the property tax abatement described in this Agreement will not apply to special assessments or ad valorem personal property taxes and will not reduce or eliminate any licenses or fees owing to the City or any other taxing jurisdiction with respect to the Redevelopment Project. Notwithstanding the foregoing, the Port Authority and the LCRA may, but are not obligated to, provide personal property tax abatement to specific tenants, subsequent owners or end users of all or any portion of the Redevelopment Project upon mutual agreement of tenant/end-user and the Port Authority or the LCRA, as applicable.

4.2. Sales Tax Exemption on Construction Materials. At the Redeveloper's request, the Port Authority or the LCRA will participate in one or more industrial revenue bond transactions to facilitate sales tax exemption on construction materials. The cost of issuing any such industrial revenue bonds shall be paid by the Redeveloper or applicable Sub-Developer, including, without limitation, Port Authority and LCRA issuance fees, bond counsel fees and trustee fees. As a condition of any sales tax exemption on construction materials facilitated by the Port Authority or the LCRA, the Redeveloper or applicable Sub-Developer will be required to, upon completion of the applicable Private Development, submit a report in similar form to **Exhibit G** attached hereto to the Port Authority or the LCRA, as applicable, detailing the use of the aforementioned sales tax exemption.

4.3. Special Taxing Districts and Zones.

(a) *CID and TDD.* The Parties agree that the Redeveloper may petition the appropriate entities for the creation of the CID and the TDD. The CID and TDD may include all or any portion of the Redevelopment Area. The Boards of Directors of the CID and TDD shall include, at a minimum, one person designated by the Executive Director the Port Authority and one person designated by the Executive Director of the LCRA. The Parties, acting through their representatives on the Boards of Directors, shall cause the CID and the TDD to:

(1) engage qualified administrators and/or legal counsel to assist in managing the CID and TDD and ensuring compliance with applicable laws; and

(2) enter into the Infrastructure Financing Agreement with the Port Authority, wherein the CID and the TDD agree to contribute their respective tax revenues, less annual operating expenses (as set forth in the Infrastructure Financing Agreement) to the repayment of any Infrastructure Notes and Infrastructure Bonds, and, with respect to the CID, all permissible uses under the CID Act, including uses permitted in blighted areas.

(b) *Port Improvement District.* Upon acquisition of real property by the Redeveloper, one or more Sub-Developers or a Related Party, sufficient to provide "Consent" under Section 68.205(4) of the Port Law, the Redeveloper may request that the Port Authority commence proceedings to establish a PID on within the Redevelopment Area. Upon establishment of the PID, the Port Authority, subject to voter approval, will impose a 1% PID Sales Tax within the PID boundaries. The Redeveloper shall pay all out-of-pocket costs, including attorneys' fees, incurred by the Port Authority to create the PID and impose the PID Sales Tax. From time to time, the Port Authority will, at the request and expense of the Redeveloper and with the consent of the applicable property owner, commence proceedings to expand PID boundaries to include additional properties within the Redevelopment Area. PID revenues, less annual operating expenses (as set forth in the Infrastructure Financing Agreement) will be dedicated to the repayment of any Infrastructure Notes and Infrastructure Bonds.

(c) *AIM Zone.* At the request and expense of the Redeveloper, the Port Authority will establish one or more AIM Zones on properties within the Redevelopment Area that are reasonably expected to generate at least 25 New Jobs (as defined in Section 68.075, RSMo.). AIM Zone revenues, less annual operating expenses (as set forth in the Infrastructure Financing Agreement) will be dedicated to the repayment of any Infrastructure Notes and Infrastructure Bonds. Notwithstanding the foregoing:

(1) The Port Authority and the Redeveloper acknowledge that the establishment of an AIM Zone may impact the availability of certain withholding tax incentives provided directly by the State, including, without limitation, the Missouri Works Program described in Sections 620.2000 to 620.2020, RSMo. Accordingly, no AIM Zone will be established by the Port Authority

unless the employer or employers of the aforementioned New Jobs consent to the establishment of the AIM Zone.

(2) The Redeveloper shall engage a consultant to ensure that all appropriate tax forms with respect to the AIM Zone are filed with the State. The Port Authority will cooperate with the Redeveloper and the consultant in such endeavor, but shall have no responsibility if the forms necessary to receive revenues from the AIM Zone are not properly filed with the State.

(3) The Parties acknowledge that, pursuant to Section 68.075, RSMo., no AIM Zone may be established after August 28, 2030. Accordingly, this Section shall become null and void if an AIM Zone is not established by such date (or if the Section 68.075, RSMo. is amended, the last date for establishment of an AIM Zone under the amended statute).

(d) *Reimbursement for Public Infrastructure Costs.*

(1) The Redeveloper may, from time to time, file a Certificate of Public Infrastructure Costs with the Port Authority, indicating Public Infrastructure Costs paid by or on behalf of the Redeveloper and eligible under the CID Act, the TDD Act, the Port Law or the AIM Zone Act to be reimbursed by the CID, the TDD or the Port Authority. Within the 45 days of the Port Authority's receipt of the Certificate of Public Infrastructure Costs from the Redeveloper, the Port Authority shall review the Certificate and either approve it or return it with written objections to the Port Authority. If no objections are received to the Certificate of Public Infrastructure Costs within said 45-day period, it will be deemed approved by the Port Authority.

(2) Following (i) creation of the CID, TDD and PID, (ii) a resolution of the Board of Commissioners authorizing the issuance of Infrastructure Notes and approving the Infrastructure Financing Agreement, and (iii) approved or deemed approved Certificates of Public Infrastructure Costs totaling at least \$1,000,000, the Port Authority shall issue the Infrastructure Notes.

(3) The final terms of the Infrastructure Notes shall be specified in the resolution described in (2)(ii) above (including the Infrastructure Financing Agreement and any trust indenture approved thereby). Notwithstanding the foregoing, the Port Authority and the Redeveloper agree that (i) they will cooperate in good faith to determine mutually acceptable and commercially reasonable terms for the Infrastructure Notes and (ii) the final maturity of the Infrastructure Notes shall not exceed 40 years from the issuance of the Infrastructure Notes.

(e) *Infrastructure Bonds.* At the sole discretion of the Port Authority, the Port Authority may issue Infrastructure Bonds. The Infrastructure Bond Proceeds shall be used to pay (1) the costs of issuing the Infrastructure Bonds (including capitalized interest and a debt service reserve fund, if any), (2) refund any Infrastructure Notes, and (3) provide a source of funding for the direct payment of Public Infrastructure Costs.

ARTICLE V

COMMUNITY BENEFITS

5.1. Nonprofit Corporation.

(a) The Redeveloper shall either (1) have the Board of Directors of the CID program, manage, maintain and operate certain public spaces within the Redevelopment Area, or (2) at its own expense cause

the creation of the Nonprofit Corporation to program, manage, maintain and operate certain public spaces within the Redevelopment Area.

(b) Should the Redeveloper choose to establish a Nonprofit Corporation, it will be funded through contributions made by (1) certain property owners and tenants within the District, (2) the CID (with respect to certain eligible activities and subject to appropriation by the Board of Directors of the CID), and (3) other legally permissible sources.

(c) If the Redeveloper chooses to establish a Nonprofit Corporation at any time during the term of this Agreement, it shall cause the Nonprofit Corporation's bylaws to require that one board member of the Nonprofit Corporation be designated the Executive Director of the Port Authority and one board member of the Nonprofit Corporation be designated by the Executive Director of the LCRA throughout the remaining term of this Agreement.

5.2. Public Infrastructure Connectivity.

(a) The Redeveloper shall generally cooperate with Great Rivers Greenway District, a/k/a the Metropolitan Park and Recreation District, the City and neighboring property owners to design any Public Infrastructure Improvements in a manner that provides appropriate connectivity to adjacent streets, sidewalks and other public infrastructure.

(b) The Redeveloper shall generally cooperate and shall cause any Sub-Developer to generally cooperate with the City regarding routing of any truck traffic away from residential uses or portions of the Redevelopment Area expected to see significant pedestrian traffic.

5.3. Security Cameras. The Redeveloper shall ensure that each building constructed or redeveloped as part of the Redevelopment Project contains at least one security camera that is linked to the City's Real Time Crime Center (or successor video monitoring service).

5.4. Workforce and Affordable Housing. The Redeveloper acknowledges that any Parcel Development Agreement for a Private Development containing residential uses will require that certain units be set aside for workforce or affordable housing and/or that the Redeveloper or Sub-Developer make a contribution to the City's Affordable Housing Trust Fund or other affordable housing program, upon such terms as will be approved by the parties to the applicable Parcel Development Agreement.

5.5. Cooperation with St. Louis Public School District. With respect to any Private Development containing commercial or industrial development, the Redeveloper shall cooperate with the St. Louis Public School District ("SLPS") and SLDC to identify and, if necessary, create programs that link SLPS students and recent graduates with employment and training programs at businesses within the Redevelopment Area. The intent of this Section is not to require any specific program, but, by way of example, potential programs may include internships, hiring fairs, "earn to learn" programs, and targeted technical education and training programs.

5.6. First Source Employment; Living Wage Initiative.

(a) The City enacted an ordinance to create a pool of employable residents of the City to serve as the first source for finding employees for entry-level jobs (Ordinance No. 60275, codified as St. Louis City Revised Code Chapter 3.90). The ordinance also applies to tenants or lessees of recipients of financial assistance that have thirty or more employees at the redevelopment site. If the ordinance applies to the Redeveloper or a Sub-Developer, by virtue of this Agreement or otherwise, the Redeveloper or applicable Sub-Developer must execute an employment agreement meeting the requirements of Ordinance No. 60275.

(b) The City has a Living Wage Ordinance (Ordinance No. 65597, codified as St. Louis City Revised Code Chapter 3.99) that applies to a recipient of any financial assistance from the City and/or a City Agency (as defined by said ordinance and inclusive of the Port Authority and the LCRA) awarded after the effective date of the ordinance, provided that the financial assistance has a present value of at least \$20,000,000 over the term of the assistance and the primary purpose of the assistance is economic development or job growth. If the ordinance applies to the Redeveloper or a Sub-Developer, by virtue of this Agreement, a Parcel Development Agreement or otherwise, the Redeveloper or applicable Sub-Developer will be required to abide by said ordinance.

5.7. Nondiscrimination.

(a) The Redeveloper agrees that, during the term of this Agreement and as an independent covenant running with the land, there shall be no discrimination upon the basis of race, creed, color, national origin, sex, age, marital status or physical handicap in the sale, lease, rental, occupancy or use of any of the facilities under its control within the Redevelopment Area or any portion thereof and said covenant may be enforced by the City, the Port Authority, the LCRA or the United States of America or any of their respective agencies. The Redeveloper further agrees that a provision containing the covenants of this paragraph shall be included in all Parcel Development Agreements and any agreements pertaining to the lease or conveyance or transfer (by any means) of all portions of the Redevelopment Area under its control. Except as provided in this Section, the Redeveloper shall have no obligation to enforce the covenants made by any transferee or lessee, tenant, occupant or user of any of the facilities within the Redevelopment Area.

(b) Without limiting any of the foregoing, the Redeveloper voluntarily agrees to observe the Equal Opportunity and Nondiscrimination Guidelines set forth as **Exhibit E**, attached hereto and incorporated herein by reference. By execution of this Agreement, the Redeveloper certifies and agrees that it is under no contractual or other disability that would materially impair its ability to observe the Guidelines set forth as **Exhibit E**, attached hereto and incorporated herein by reference.

ARTICLE VI GENERAL PROVISIONS

6.1. Redeveloper's Right of Termination. The Redeveloper may, by giving written notice to the Port Authority and the LCRA, abandon the Redevelopment Project and terminate this Agreement in whole or with respect to only a portion of the Redevelopment Area (in which case this Agreement will remain applicable to only the portion of the Redevelopment Area for which this Agreement has not been terminated).

6.2. Port Authority's and LCRA's Right of Termination. The Port Authority and the LCRA may terminate this Agreement at any time if the Redeveloper defaults in or breaches any material provision of this Agreement and fails to cure such default or breach pursuant to **Section 6.5** or materially breaches any representation or warranty contained in **Section 7.3**.

6.3. Results of Termination. If this Agreement is terminated pursuant to **Section 6.1** or **Section 6.2**:

(a) the LCRA and the Port Authority will have no further obligation to enter into any Parcel Development Agreements (provided, however, any previously executed Parcel Development Agreements shall remain in effect, including, without limitation, any real property

tax abatement granted in accordance with such Parcel Development Agreement, so long as the applicable Sub-Developer has not defaulted or materially breached the Parcel Development Agreement in a manner that permits the Parcel Development Agreement to be terminated);

(b) no further Certificates of Public Infrastructure Costs will be approved or deemed approved by the Port Authority (provided, however, any existing Infrastructure Notes or Infrastructure Bonds shall remain valid and payable in accordance with the terms of the trust indenture associated with such obligations and any industrial revenue bonds previously entered into with respect to any sales tax exemption in connection with the applicable Redevelopment Project shall remain in effect);

(c) any CID, TDD and PID previously created and operating will continue to operate as long as Infrastructure Notes are outstanding; and

(d) except as may expressly survive the termination of this Agreement, all other rights and obligations hereunder shall be deemed cancelled.

6.4. Successors and Assigns.

(a) The Redeveloper shall not assign its interest in this Agreement without the consent of the Executive Director of the Port Authority and the Executive Director of the LCRA unless such assignment is to a Related Party. Notwithstanding the foregoing, the Executive Director of the Port Authority and the Executive Director of the LCRA shall not withhold their consent if they are reasonably satisfied that the proposed assignee has significant development experience and the financial ability to complete and operate the Redevelopment Project in accordance with the terms of this Agreement.

(b) The Redeveloper shall, promptly following the consummation of any assignment of its interests in this Agreement, provide the Port Authority and the LCRA with a copy of the assignment and assumption agreement between the Redeveloper and the assignee.

6.5. Remedies. If any Party defaults in the performance of, or breaches any term or condition of, this Agreement, the defaulting or breaching Party shall, upon written notice from the other Party or Parties specifying such default or breach, cure or remedy such default or breach within 30 days after receipt of notice (or such longer period as is reasonably required to cure such default, provided that (a) the breaching party has commenced such cure within said 30-day period, and (b) the breaching Party diligently prosecutes such cure to completion). If such cure or remedy is not taken or not diligently pursued, or the default or breach is not cured or remedied as provided above, the aggrieved Party or Parties may institute such proceedings as may be necessary or desirable in its opinion to cure and remedy such default or breach, including, but not limited to proceedings to compel specific performance by the defaulting or breaching party or to terminate this Agreement. The Redeveloper shall pay all costs of the prevailing Party or Parties in any such action under this Section.

6.6. Notices. Any notice, demand or other communication required by this Agreement to be given by one party hereto to another shall be in writing and shall be sufficiently given or delivered if dispatched by certified United States first class mail, postage prepaid, delivered personally, or transmitted electronically (and receipt confirmed by telephone or electronic read receipt):

(a) If to the Port Authority:

City of St. Louis Port Authority
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Executive Director

with copies to:

St. Louis Development Corporation
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Zach Wilson, Vice President, Economic Development Incentives

St. Louis Development Corporation
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: General Counsel

(b) If to the LCRA:

Land Clearance for Redevelopment Authority of the City of St. Louis
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Executive Director

with a copy to:

St. Louis Development Corporation
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Zach Wilson, Vice President, Economic Development Incentives

St. Louis Development Corporation
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: General Counsel

(c) If to the Redeveloper:

GS STL Developer LLC
12747 Olive Boulevard, Suite 300
St. Louis, Missouri 63141
Attention: Greg Gleicher

with copies to:

Good Developments STL LLC
626 First Avenue, W34C
New York, New York 10016
Attention: Greg Gleicher

Steadfast City
3407 Jefferson Avenue, Suite #03
St. Louis, Missouri 63118
Attention: Doug Rasmussen

Lewis Rice LLC
600 Washington Ave., Ste. 2500
St. Louis, MO 63101
Attention: Missy McCoy

or to such other address with respect to either party as that party may, from time to time, designate in writing and forward to the other as provided in this Section. A duplicate copy of each notice or other communication given hereunder shall be given to each other party.

6.7. Insurance Requirements.

(a) The Redeveloper will cause there to be insurance for the portions of the Redevelopment Project owned or leased by the Redeveloper or a Related Party as hereinafter set forth at all times during the construction of the Redevelopment Project and continuing during the term of this Agreement. The policies for such insurance shall be placed with financially sound and reputable insurers licensed to transact business in the State of Missouri. The Redeveloper shall, from time to time at the request of the Port Authority or the LCRA, furnish the Port Authority or the LCRA with "ACORD" certificates of insurance on:

(1) property and casualty insurance to keep the applicable portions Redevelopment Project constantly insured against loss or damage by fire, lightning and all other risks covered by the extended coverage insurance endorsement then in use in the State in an amount equal to the Full Insurable Value thereof (subject to reasonable loss deductible clauses). "Full Insurable Value" means the actual replacement cost of the applicable portion of the Redevelopment Project;

(2) commercial liability insurance with coverages of not less than the current absolute statutory waivers of sovereign immunity in Sections 537.600 and 537.610 of the Revised Statutes of Missouri, as amended (which for calendar year 2026 is equal to \$3,547,658 for all claims arising out of a single accident or occurrence and \$532,148 for any one person in a single accident or incurrence). Further, the policy shall be adjusted upward annually, to remain at all times not less than the inflation adjusted sovereign immunity limits as published in the Missouri Register on an annual basis by the Department of Insurance pursuant to Section 537.610 of the Revised Statutes of Missouri, as amended; and

(3) workers' compensation insurance, with statutorily required coverage.

(b) The Redeveloper shall maintain commercial general liability insurance subject to the terms of the Insurance Services Office ("ISO") Commercial General Liability Coverage Form CG 0001, or a substitute form providing coverage that is at least as broad as the ISO form specified, including standard contractual liability coverage. Subject to such policy form's terms, conditions, and exclusions, contractual liability coverage shall apply to the Redeveloper's indemnification obligations under **Section 6.8**. The required commercial general liability insurance shall be placed with such insurance carriers and contain such terms and conditions as shall be reasonably acceptable to the Executive Director of the Port Authority and the Executive Director of the LCRA. The Redeveloper shall provide the Port Authority and the LCRA with a current certificate of insurance to evidence the current effectiveness of such insurance coverage upon the execution of this Agreement and from time to time thereafter upon written request of the Port Authority or the LCRA. If requested in writing by the Executive Director of the Port Authority or the Executive Director of the LCRA, the Redeveloper shall name the Port Authority and the LCRA as additional insureds under the commercial general liability insurance coverage required by this subsection, except to the extent of liability arising out of the negligence or willful misconduct of the Port Authority or the LCRA.

6.8. Release and Indemnification.

(a) The indemnification and covenants contained in this Section shall survive expiration or earlier termination of this Agreement.

(b) The Redeveloper hereby agrees that, anything to the contrary herein notwithstanding, it will defend, indemnify and hold harmless the Port Authority, the LCRA, and their respective governing body members, employees, attorneys and agents against any and all claims, demands, actions, causes of action, loss, damage, injury, liability and/or expense (including reasonable attorneys' fees and court costs) resulting from, arising out of, or in any way connected with:

(1) the Redeveloper's failure to comply with any provision of this Agreement or the activities or transactions contemplated herein;

(2) the negligence or intentional misconduct of the Redeveloper or an affiliate thereof, or their respective employees and agents;

(3) the presence of hazardous wastes, hazardous materials or other environmental contaminants in the Redevelopment Area;

(4) any loss or damage to property or any injury to or death of any person occurring in or about the Redevelopment Project in connection with any activities, acts or omissions of the Redeveloper, a Related Party, or any of their respective contractors, agents or employees; or

(5) otherwise arising out of the adoption or administration of this Agreement or the construction or operation of the Redevelopment Project.

If the validity or construction of any State laws or local ordinances or resolutions in connection with this Agreement or affecting the Redevelopment Project are contested in court, the Redeveloper shall defend, hold harmless and indemnify the Port Authority and the LCRA from and against all claims, demands and/or liabilities of any kind whatsoever including, without limitation, any claim for reasonable attorneys' fees and court costs, and the Redeveloper shall pay any monetary judgment and all court costs rendered against the Port Authority or the LCRA, if any.

(c) Notwithstanding anything herein to the contrary, the Port Authority, the LCRA and their respective governing body, employees, attorneys and agents shall not be liable to the Redeveloper for damages or otherwise if all or any part of Chapter 353, the LCRA Law, the Port Law and/or any other ordinance of the City or resolution of the Port Authority or the LCRA adopted in connection with this Agreement or the Redevelopment Project is declared invalid or unconstitutional in whole or in part by the final (as to which all rights of appeal have expired or have been exhausted) judgment of any court of competent jurisdiction.

(d) Notwithstanding the foregoing terms of this Section, the Redeveloper shall have no obligation to defend, hold harmless or indemnify the Port Authority or the LCRA with respect to any matter or expense resulting from or arising out of the negligence or willful misconduct of the Port Authority or the LCRA.

(e) All covenants, stipulations, promises, agreements and obligations of the Port Authority and the LCRA contained herein shall be deemed to be the covenants, stipulations, promises, agreements and obligations of the Port Authority and the LCRA and not of any of the Port Authority's or the LCRA's governing body members, employees, attorneys and agents in their individual capacities.

6.9. Choice of Law; Conflicts. This Agreement shall be taken and deemed to have been fully executed, made by the parties in, and governed by the laws of the State of Missouri for all purposes and intents. Any action arising out of, or concerning, this Agreement shall be brought only in the Circuit Court of the City of St. Louis.

6.10. Counterparts. This Agreement is executed in multiple counterparts, each of which shall constitute one and the same instrument.

6.11. Severability. If any term or provision of this Agreement is held to be unenforceable by a court of competent jurisdiction, the remainder shall continue in full force and effect, to the extent the remainder can be given effect without the invalid provision.

6.12. No Waiver of Sovereign Immunity. Nothing in this Agreement shall be construed or deemed to constitute a waiver of the Port Authority's or the LCRA's sovereign immunity.

6.13. No Third Party Beneficiaries. This Agreement constitutes a contract solely among the Port Authority, LCRA and the Redeveloper. No third party has any beneficial interest in or derived from this Agreement.

6.14. Conflict of Interest. In the acquisition, installation, completion and operation of the Redevelopment Project, no shareholder, member or officer of the Redeveloper shall knowingly, after due inquiry, cause the Redeveloper to employ or contract with any person if a member of such person's immediate family is a member of the Port Authority's or LCRA's Boards of Commissioners or the City's Board of Aldermen, or is employed by the Port Authority, the LCRA or the City in an administrative capacity (i.e. those who have selection, hiring or supervisory or operational responsibility for the work to be performed pursuant to this Agreement). For the purposes of this Section "immediate family" includes wife, husband, son, daughter, mother, father, brother, sister, brother-in-law, sister-in-law, father-in-law, mother-in-law, aunt, uncle, niece, nephew, step-parent, and step-child.

6.15. Further Authority. Pursuant to the Port Authority's and the LCRA's resolutions authorizing the execution of this Agreement, the Executive Directors, Assistant Secretaries and other authorized officers of the Port Authority and the LCRA (collectively, the "*Public Signatories*") are

authorized to execute all documents on behalf of the Port Authority and the LCRA (including documents pertaining to the transfer of property or the financing and refinancing of the Redevelopment Project) as may be required to carry out and comply with the intent of this Agreement. The Public Signatories are also authorized, unless expressly provided herein, to grant on behalf of the Port Authority and the LCRA such consents, estoppels and waivers relating to this Agreement as may be requested during the term hereof; provided, such consents, estoppels and/or waivers shall not increase the amount of tax abatement contemplated herein, waive an event of default or materially change the nature of the transactions contemplated herein unless otherwise approved by the Boards of Commissioners of the Port Authority and the LCRA.

6.16. Term of Agreement. This Agreement shall terminate on the earliest of the following: (a) termination by the Redeveloper pursuant to **Section 6.1**; (b) termination by the Port Authority or the LCRA pursuant to **Section 6.2**; or (c) December 31 of the last calendar year during which the Redeveloper or a Sub-Developer receives tax abatement as contemplated by this Agreement and any applicable Parcel Development Agreement.

ARTICLE VII

REPRESENTATIONS, WARRANTIES AND COVENANTS OF THE PARTIES

7.1. Representations of the Port Authority. The Port Authority makes the following representations and warranties, which are true and correct on the date hereof:

(a) *No Violations.* The execution and delivery of this Agreement, the consummation of the transactions contemplated thereby, and the fulfillment of the terms and conditions hereof do not and will not conflict with or result in a breach of any of the terms or conditions of any agreement or instrument to which it is now a party, and do not and will not constitute a default under any of the foregoing.

(b) *No Litigation.* To the Port Authority's knowledge, no litigation, proceedings or investigations are pending against the Port Authority with respect to the Redevelopment Project or this Agreement. In addition, no litigation, proceedings or investigations are pending against the Port Authority that seek to restrain, enjoin or in any way limit the approval or issuance and delivery of this Agreement or which would in any manner challenge or adversely affect the existence or powers of the Port Authority to enter into and carry out the transactions described in or contemplated by the execution, delivery, validity or performance by the Port Authority of, the terms and provisions of this Agreement.

(c) *No Default.* No default or event of default has occurred and is continuing, and no event has occurred and is continuing which with the lapse of time or the giving of notice, or both, would constitute a default or an event of default in any material respect on the part of the Port Authority under this Agreement.

7.2. Representations of the LCRA. The LCRA makes the following representations and warranties, which are true and correct on the date hereof:

(a) *No Violations.* The execution and delivery of this Agreement, the consummation of the transactions contemplated thereby, and the fulfillment of the terms and conditions hereof do not and will not conflict with or result in a breach of any of the terms or conditions of any agreement

or instrument to which it is now a party, and do not and will not constitute a default under any of the foregoing.

(b) *No Litigation.* To the LCRA's knowledge, no litigation, proceedings or investigations are pending against the LCRA with respect to the Redevelopment Project or this Agreement. In addition, no litigation, proceedings or investigations are pending against the LCRA that seek to restrain, enjoin or in any way limit the approval or issuance and delivery of this Agreement or which would in any manner challenge or adversely affect the existence or powers of the LCRA to enter into and carry out the transactions described in or contemplated by the execution, delivery, validity or performance by the LCRA of, the terms and provisions of this Agreement.

(c) *No Default.* No default or event of default has occurred and is continuing, and no event has occurred and is continuing which with the lapse of time or the giving of notice, or both, would constitute a default or an event of default in any material respect on the part of the LCRA under this Agreement.

7.3. Representations of the Redeveloper. The Redeveloper makes the following representations and warranties, which representations and warranties are true and correct on the date hereof:

(a) *No Violations.* The execution and delivery of this Agreement, the consummation of the transactions contemplated thereby, and the fulfillment of the terms and conditions hereof do not and will not conflict with or result in a breach of any of the terms or conditions of any corporate or organizational restriction or of any agreement or instrument to which it is now a party, and do not and will not constitute a default under any of the foregoing.

(b) *No Litigation.* To the Redeveloper's knowledge (including the knowledge of any member of the Redeveloper executing this Agreement), no litigation, proceedings or investigations are pending against the Redeveloper (or any member of the Redeveloper) with respect to the Redevelopment Project. In addition, to the Redeveloper's knowledge (including the knowledge of any member of the Redeveloper executing this Agreement), no litigation, proceedings or investigations are pending against the Redeveloper (or any member of the Redeveloper) that seek to restrain, enjoin or in any way limit the approval or issuance and delivery of this Agreement or which would in any manner challenge or adversely affect the existence or powers of the Redeveloper (or any member of the Redeveloper) to enter into and carry out the transactions described in or contemplated by the execution, delivery, validity or performance by the Redeveloper (or any member of the Redeveloper) of, the terms and provisions of this Agreement.

(c) *No Default.* No default or event of default has occurred and is continuing, and no event has occurred and is continuing which with the lapse of time or the giving of notice, or both, would constitute a default or an event of default in any material respect on the part of the Redeveloper under this Agreement, or any other material agreement or material instrument related to the Redeveloper's ability to perform pursuant to this Agreement to which the Redeveloper is a party or by which the Redeveloper is or may be bound.

(d) *Compliance with Laws.* With respect to its ability to perform pursuant to this Agreement, the Redeveloper is, to its knowledge, in compliance with all valid laws, ordinances, orders, decrees, decisions, rules, regulations and requirements of every duly constituted governmental authority, commission and court applicable to any of its affairs, business, operations as contemplated by this Agreement.

(e) *Groundbreaking and Other Public Events.* When the construction of the Redevelopment Project is initiated, if there is a scheduled “ground breaking” event, representatives of SLDC, the Port Authority and the LCRA shall be invited. When the Redevelopment Project is completed, if there is a “ribbon cutting” event, representatives of the SLDC, the Port Authority and the LCRA shall be invited. SLDC, the Port Authority and the LCRA shall also be acknowledged if any signage is displayed on a construction site in the Redevelopment Area listing participants in the Redevelopment Project. If there is a construction sign on the site, a SLDC logo shall be included on the sign.

[Remainder of page intentionally left blank]

IN WITNESS WHEREOF, the Port Authority, the LCRA and the Redeveloper have caused this Agreement to be executed in their respective names and the Port Authority and the LCRA have caused their respective seals to be affixed thereto, and attested as to the date first above written.

CITY OF ST. LOUIS PORT AUTHORITY

(SEAL)

By: _____
Stephen Westbrook
Executive Director

ATTEST:

Assistant Secretary

APPROVED AS TO LEGAL FORM
FOR THE PORT AUTHORITY

Assistant City Counselor

ACKNOWLEDGMENT

STATE OF MISSOURI)
) SS
CITY OF ST. LOUIS)

On this, the ____ day of _____, 2026, before me appeared **STEPHEN WESTBROOKS**, to me personally known, who, being by me duly sworn, did say that he is the Executive Director of the **CITY OF ST. LOUIS PORT AUTHORITY**, a port authority and political subdivision of the State of Missouri, and that he is authorized to sign the forgoing instrument on behalf said public body, and acknowledged that he executed said instrument as said public body's free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal in the City and State aforesaid, the day and year first above written.

Name: _____
Notary Public - State of Missouri
Commissioned in St. Louis City

My Commission Expires: _____

**LAND CLEARANCE FOR REDEVELOPMENT
AUTHORITY OF THE CITY OF ST. LOUIS**

(SEAL)

By: _____
Stephen Westbrooks
Executive Director

ATTEST:

Assistant Secretary

APPROVED AS TO LEGAL FORM
FOR THE AUTHORITY

Associate City Counselor

ACKNOWLEDGMENT

STATE OF MISSOURI)
) SS
CITY OF ST. LOUIS)

On this, the ____ day of _____, 2026, before me appeared **STEPHEN WESTBROOKS**, to me personally known, who, being by me duly sworn, did say that he is the Executive Director of the **LAND CLEARANCE FOR REDEVELOPMENT AUTHORITY OF THE CITY OF ST. LOUIS**, a public body corporate and politic, and that he is authorized to sign the forgoing instrument on behalf said public body, and acknowledged that he executed said instrument as said public body's free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal in the City and State aforesaid, the day and year first above written.

Name: _____
Notary Public - State of Missouri
Commissioned in St. Louis City

My Commission Expires: _____

GS STL DEVELOPER LLC

By: _____
Name: _____
Title: _____

ACKNOWLEDGMENT

STATE OF _____)
) SS.
COUNTY OF _____)

On this, the ____ day of _____, 2026, before me appeared _____, to me personally known, who, being by me duly sworn, did say that (s)he is the _____ of **GS STL DEVELOPER LLC**, a Delaware limited liability company, and that (s)he is authorized to sign the forgoing instrument on behalf said company, and acknowledged that (s)he executed said instrument as said company's free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal in the City and State aforesaid on the day and year first above written.

Name: _____
Notary Public - State of Missouri
Commissioned in St. Louis City

My Commission Expires: _____

EXHIBIT A

LEGAL DESCRIPTION OF REDEVELOPMENT AREA

BEGINNING at the point of intersection where the southwest corner of St. Louis City parcel number 00529010000 intersects with the eastern right-of-way line of the Interstate 64 On-Ramp extending then north along the aforesaid right-of-way line following the Interstate 64 On-Ramp then eastward to a point of intersection with the eastern right-of-way line of S Wharf Street. Extending then southward along the eastern right-of-way line of S Wharf Street to the northeast corner of the boundary of parcel number 08578010000 extending then directly southward to the northeast corner of parcel number 08589031000 the extending southward along the eastern boundary line of the aforesaid parcel to the point of intersection with the northeast corner of parcel number 08609030000. Extending then southward 2,000 feet to a fixed point from which the boundary then continues northwestward along a path even with the western right-of-way boundary of parcel number 08749050000 2,090 feet to a point of intersection with the southern right-of-way line of Rutger Street. Continuing then west along the aforesaid right-of-way line to the point of intersection with the western right-of-way line of S Broadway and then continuing north along the aforesaid right-of-way line to a point of intersection with the northwestern corner of the boundary of parcel number 01549010000 continuing then east along the northern boundary of the aforesaid parcel to the eastern boundary line of parcel number 01549040000. Continuing then to the northern boundary of the aforesaid parcel and continuing then east to the western right-of-way line of S 3rd Street. Continuing then south along the aforesaid right-of-way line to the northern right-of-way line of Rutger Street and continuing then east along the aforesaid right-of-way line to the southeastern point of the boundary of parcel number 0479040000 continuing then northeast along the aforesaid parcel boundary line and continuing north along the eastern boundary line of parcel number 0479050000 to the northeastern point of the boundary line of parcel number 00489090000. Continuing then west along the northern boundary line of the aforesaid parcel to the eastern right-of-way line of S 3rd Street continuing then south along the aforesaid right-of-way line to the point of intersection with the northern right-of-way line of Convent Street continuing then west along the aforesaid right-of-way line to its point of intersection with the eastern right-of-way line of S Broadway. Continuing then north along the aforesaid right-of-way line to the northern right-of-way line of Chouteau Avenue. Continuing then east along the aforesaid right-of-way line to the eastern right-of-way line of S 3rd Street. Continuing then north along the aforesaid right-of-way line to the northern right-of-way line of Gratiot Street then continuing east along the aforesaid right-of-way line to the point of intersection with the eastern boundary line of parcel number 00519040000 and then continuing north along the eastern boundary line of the aforesaid parcel to the northern boundary line of the aforesaid parcel and then continuing east along the aforesaid parcel boundary line to the point of BEGINNING.

EXHIBIT B

RESERVED

EXHIBIT C

CERTIFICATE OF PUBLIC INFRASTRUCTURE COSTS

TO:

City of St. Louis Port Authority
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Executive Director

Re: Infrastructure Financing Agreement dated as of _____, 202_ (the “Infrastructure Financing Agreement”) by and among the City of St. Louis Port Authority (the “Port Authority”), the _____ Community Improvement District (the “CID”) and the _____ Transportation Development District (the “TDD”)

Terms not otherwise defined herein shall have the meaning ascribed to such terms in the Amended and Restated Master Redevelopment Agreement dated as of _____, 2026 (the “*Agreement*”), among the Port Authority, the Land Clearance for Redevelopment Authority of the City of St. Louis (the “*LCRA*”) and GS STL Developer LLC (the “*Redeveloper*”). In connection with said Agreement, the undersigned hereby states and certifies that:

1. Each item listed on **Schedule 1** hereto is a cost related to the Public Infrastructure Improvements.
2. These Public Infrastructure Improvement costs have been paid by the Redeveloper or Sub-Developer, as applicable, and are reimbursable under the Agreement and the Infrastructure Financing Agreement.
3. Each item listed on **Schedule 1** has not previously been paid or reimbursed from money derived from the Port Authority, the CID or the TDD, and no part thereof has been included in any other certificate previously filed with the Port Authority.
4. There has not been filed with or served upon the Redeveloper any notice of any lien, right of lien or attachment upon or claim affecting the right of any person, firm or corporation to receive payment of the amounts stated in this request, except to the extent any such lien is being contested in good faith.
5. All necessary permits and approvals required for the portion of the Public Infrastructure Improvements for which this certificate relates have been issued and are in full force and effect.
6. All Public Infrastructure Improvements for which payment or reimbursement is requested has been performed in a good and workmanlike manner and in accordance with the Agreement.
7. If any cost item to be reimbursed under this Certificate is deemed not to be eligible under the Agreement and, as applicable, the CID Act, the TDD Act, the Port Law or the AIM Zone Act, and the Agreement, the Redeveloper shall have the right to substitute other eligible Public Infrastructure Improvement costs for payment hereunder.
8. The Redeveloper is not in default or breach of any material term or condition of the Agreement beyond the applicable cure period, if any.

Dated this ____ day of _____, ____.

GS STL DEVELOPER LLC

By: _____
Name: _____
Title: _____

Approved for payment this ____ day of _____, 20__.

CITY OF ST. LOUIS PORT AUTHORITY

By: _____
Name: _____
Title: _____

Schedule 1

The Redeveloper (or a Sub-Developer acting pursuant to a Parcel Development Agreement) has incurred the following costs in connection with the Public Infrastructure Improvements:

Payee:	Amount:	Description of Reimbursable Redevelopment Project Costs:
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EXHIBIT D

FORM OF FEDERAL WORK AUTHORIZATION PROGRAM AFFIDAVIT

STATE OF MISSOURI)
) ss.
CITY OF ST LOUIS)

Before me, the undersigned Notary Public, in and for the City of St Louis, State of Missouri, personally appeared _____, manager of _____, a limited liability company ("Recipient"), and after being duly sworn did depose and say:

- (1) Recipient does not now have any employees, but to the extent Recipient should become a "business entity or employer" pursuant to Section 285.530, RSMo, Recipient will enroll in and participate in a federal work authorization program with respect to the employees hired after enrollment that are working in connection with the contracted services; and
- (2) Recipient does not knowingly employ any person who is an unauthorized alien in connection with the contracted services.

The terms used in this affidavit shall have the meaning set forth in Section 285.525 R.S.Mo., et seq.

By: _____
Print Name: _____
Title: _____
Date: _____

Subscribed and sworn to before me this _____ day of _____, 202_.

Notary Public

My commission expires: _____
Print Name: _____

EXHIBIT E

EQUAL OPPORTUNITY AND NON-DISCRIMINATION GUIDELINES

In any contract for work in the Redevelopment Area, the Redeveloper, its designees, successors, assigns, and its contractors and subcontractors shall comply with all federal, state and local laws, ordinances, or regulations governing equal opportunity and nondiscrimination laws (the “*Nondiscrimination Laws*”). Moreover, the Redeveloper shall contractually require its contractors and subcontractors to comply with the Nondiscrimination Laws.

The Redeveloper and its contractors will not contract or subcontract with any party known to have been found in violation of any such laws, ordinances, regulations or these guidelines.

To the extent not prohibited by federal anti-discrimination law, the Redeveloper shall comply with the requirements of Ordinance Nos. 60275 (which is codified at Chapter 3.90 of the Revised Code of the City of St. Louis), 69427, 70767, 71094, and 71962 and Executive Order 91 pertaining to first source hiring, minority-owned and women-owned business participation, workforce development, and prevailing wage compliance.

The Redeveloper agrees for itself and its successors and assigns, that there shall be covenants to ensure that there shall be no discrimination on the part of the Redeveloper, its successors or assigns upon the basis of race, color, creed, familial status, national origin or ancestry, sex, marital status, age, sexual orientation, gender identity or expression, religion or disability in the sale, lease, rental, use or occupancy of any property, or any improvements erected or to be erected in the Redevelopment Area or any part thereof, and those covenants shall run with the land and shall be enforceable by the City of St. Louis and the United States of America, as their interests may appear in the project.

The Redeveloper shall fully comply (and ensure compliance by “anchor tenants”) with the provisions of St. Louis City Ordinance No. 60275, which is codified at Chapter 3.90 of the Revised Ordinances of The City of St. Louis.

EXHIBIT F
FORM OF PARCEL DEVELOPMENT AGREEMENT

EXHIBIT G

SALES TAX EXEMPTION REPORT

[*Sub-Developer*] (the “*Sub-Developer*”), pursuant to **Section 4.2** of the Amended and Restated Master Redevelopment Agreement dated as of _____, 2026 (the “*Master Redevelopment Agreement*”) by and among the GS STL Developer (the “*Redeveloper*”), the City of St. Louis Port Authority (the “*Port Authority*”) and the Land Clearance for Redevelopment Authority of the City of St. Louis (the “*LCRA*”) and **Section** __ of the Parcel Development Agreement dated as of _____, 202__ by and among the Sub-Developer, the Redeveloper and the [*Port Authority / LCRA*], does hereby certify that project exemption certificate provided for the “*Project*” described in the Parcel Development Agreement was used to avoid sales and use taxes that would have otherwise been charged in connection with the purchase of construction materials used to construct the Project, as shown on Schedule I attached hereto. The information contained in the attached schedule is a trade secret and should be kept confidential.

[*SUB-DEVELOPER*],
a _____ limited liability company

By: _____
Name: _____
Title: _____

SCHEDULE I

[illegible]

EXHIBIT H

URBAN DESIGN GUIDELINES

Urban Design Objectives

- The property in the Redevelopment area shall be redeveloped such that it enhances the economic, social, and infrastructure components of the Downtown and Kosciusko neighborhoods, preserves historic structures, in particular the Crunden-Martin complex of buildings, and better connects the Redevelopment Area to adjacent areas. Effort will be made to improve multi-modal connections between the district and adjacent areas, in particular to reduce the barrier-effect created by the elevated condition of I-55 in the area, and to provide improved circulation to the north and to improve connections to the Gateway Arch National Park. The combined re-development of buildings and improvements to the public realm will support goals within the Design Downtown St. Louis Neighborhood Plan by supporting increased population, recreation and cultural activities, and economic vibrancy in and around Downtown St. Louis.

Urban Design Regulations

- The district may be developed, and structures may be constructed in accordance with the requirements set forth in the Redevelopment Agreement or other agreement which may include, but not be limited to, provisions regarding construction materials, setback requirements, profile of improvements, site layout and landscaping. Structures may be built mixing use groups in a safe and logical way.
- **Rehabilitation** shall respect the original exterior in terms of design and materials. Window and door shapes and detailing shall be compatible with the original design.
- **New construction** or Alterations shall be positioned on their lot so that any existing recurrent building masses and spaces are compatible with existing assets and patterns of the neighborhood to the extent possible.
- **Exterior Materials** All new building materials on facades North of Cedar Street and West of South 1st Street which are visible from the exterior shall be of a high quality and character. There shall be a variety of uses and programs within the district located adjacent to one another which shall require unique features including varies exterior materials. All areas South of Cedar Street and East of South 1st Street shall be afforded the flexibility to be utilized as industrial with tilt-up wall structures and flat roofs or similar.
- **Architectural Details** on existing structures shall be maintained in a similar or compatible size, detail, and material. Wherever possible existing buildings will be renovated to meet Missouri State Preservation Office and National Parks Service standards pending acceptance into the state and federal tax credit program. Where they are badly deteriorated, details may be replaced with durable and authentic materials containing thoughtful professional detailing. Both new and replacement window and door frames shall be limited to wood or color finished aluminum on the lower levels of street facing or primary facades, including basement windows. Raw or unfinished aluminum and glass block are not acceptable. There shall be a variety of uses and programs within the district located adjacent to one another which shall require unique features including varies architectural details. All areas South of Cedar Street and East of South 1st Street shall be afforded the flexibility to be utilized as industrial with tilt-up wall structures and flat roofs or similar.

- **Roof Shapes.** When one roof shape is employed in a predominance of existing buildings in a block, any proposed new construction or alteration should be viewed with respect to its compatibility with the existing adjacent buildings when feasible. There shall be a variety of uses and programs within the district located adjacent to one another which shall require unique features including roof shape. All areas South of Cedar Street and East of South 1st Street shall be afforded the flexibility to be utilized as industrial with tilt-up wall structures and flat roofs or similar.
- **Roof Materials** of new buildings north of Cedar Street and West of South 1st Street shall be durable and authentic materials containing thoughtful professional detailing. All areas South of Cedar Street and East of South 1st Street shall be afforded the flexibility to be utilized as industrial with tilt-up wall structures and flat roofs or similar.
- **Landscaping and Sidewalk Maintenance:** The Area shall be well-landscaped. Perimeter street landscaping shall contain thoughtful professional detailing. Existing, healthy, planted trees shall be retained, if feasible. Appropriate species of new trees will be planted in reconstructed sidewalk areas. Sidewalks shall be repaired/replaced to insure safe and accessible walkability in the city.
- **Transportation and Circulation:** Best practices will be utilized to enhance multi-modal connections throughout the district and to adjacent areas, with particular attention paid to accessibility within the district, connecting currently disconnected street segments, and bridging existing barriers to the west and north of the district.
- **Fencing:** Fencing in front yards north of Cedar Street and West of South 1st Street shall be limited to durable and authentic materials containing thoughtful professional detailing. Fencing behind the building line and not facing a street may be chain link with a black matte finish, or a good quality, privacy fence. Fencing facing a side street shall be durable and authentic materials containing thoughtful professional detailing. Industrial facilities outside of the northwest district shall be permitted to include security fencing as required to safeguard materials and goods from break-ins.